

DRAFT DOCUMENT – FOR INFORMATIONAL PURPOSES ONLY – NOT OPEN FOR PROPOSALS

The Salmon River Ranger District of the Nez Perce-Clearwater National Forest are pleased to share draft solicitation documents for the upcoming End of the World G-Z Long Term Stewardship Integrated Resource Service Contract. These materials are being provided for information and review purposes only. This is supplemental information to the Request for Information published on June 11, 2025. This is NOT a Solicitation Announcement, nor is it a Request for Proposal. This request does not obligate the Government in any contract award.

Please note the following important points:

- These documents are drafts and are subject to revision.
- At this stage, no proposals or offers will be accepted.
- Feedback, comments, or questions regarding the draft documents are welcome and may be submitted to Matthew Daigle, Acquisition Program Support Officer at matthew.daigle@usda.gov.

Your input will help ensure that the final solicitation is clear, comprehensive, and aligned with industry best practices. We value your expertise and look forward to your constructive feedback. Thank you for your attention and cooperation.

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1. GENERAL INFORMATION

The Government does not intend to award a contract on the basis of this RFI or otherwise pay for information requested; Responses will be treated as information only and not as a proposal.

All Federal Acquisition Regulation citations refer to the Revolutionary FAR overhaul. AGAR citations are included full text.

2. PROPOSED SCHEDULE OF ITEMS

MANDATORY WORK ACTIVITIES:

Item No.	Description of Proposed Mandatory Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
Contract Area A-Jungle Bird					
4a.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units: 54A, 145A, 54C, 146A, 146B, 54E, 54D, 54B, 48, 63A, 63B, 69B, 87E, 58D, 147, 169, 58E, 58A, 58C, 58B, 62B, 62C, 87C, 50A, 50B and portions of Units: 49, 87A, 145B, 62A	High Volume: Acre	616		
5a.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units 47C, 47D, 47A, 87D, 47B, 57, 47E, 87B, 69A and portions of Units: 49, 87A, 145B 62A	High Volume: Acre	148		
6a.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	86,376		
6a.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6a.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	9,284		
7a	Road Reconstruction				
7a.1*	15101-0000 MOBILIZATION	Lump Sum	1.00		
7a.3*	20203-0000 SELECTIVE CLEARING, TYPE ROADSIDE, DISPOSAL METHOD (b)	Mile	8.78		
7a.5*	20207-0000 SELECTIVE CLEARING AND GRUBBING, TYPE ROADWAY, DISPOSAL METHOD (e)	Mile	0.33		
7a.6*	20301-1900 REMOVAL OF PIPE CULVERT, DISPOSAL METHOD A, COMPACTION (g)	Each	27		
7a.7*	20401-0000 ROADWAY EXCAVATION, COMPACTION (d), TOLERANCE CLASS A	Cubic Yard	1,915		
7a.8*	20420-0000 EMBANKMENT CONSTRUCTION, COMPACTION (d) PLACEMENT METHOD 2,	Cubic Yard	150		

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Item No.	Description of Proposed Mandatory Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
	TOLERANCE CLASS A				
7a.10*	20425-1000 DRAINAGE EXCAVATION, TYPE ROADSIDE DITCH, TOLERANCE CLASS A, COMPACTION (g)	Foot	505		
7a.12*	20425-2001 DRAINAGE EXCAVATION, TYPE II DRAIN DIP, TOLERANCE CLASS A, COMPACTION (e)	Each	4		
7a.13*	20425-2002 DRAINAGE EXCAVATION, TYPE CATCH BASIN, TOLERANCE CLASS A, COMPACTION (g)	Each	5		
7a.14*	21201-0000 LINEAR GRADING, COMPACTION (e), DISPOSAL METHOD (f)	Mile	6.36		
7a.19	26801-0000 HORIZONTAL DRAIN PIPE	FOOT	130		
7a.20	26802-0000 COLLECTOR SYSTEM PIPE	FOOT	40		
7a.21	30103-1000B AGGREGATE BASE COURSE, GRADING C, (b) COMPACTION B (COMMERCIAL SOURCE)	Cubic Yard	30		
7a.23	30112-0000A AGGREGATE SURFACE COURSE, GRADING F, (b) COMPACTION B (GOV'T SOURCE)	Cubic Yard	885		
7a.25*	30301-5000 ROADWAY RECONDITIONING, AGGREGATE SURFACE, COMPACTION (d)	Mile	8.45		
7a.26*	30301-6000 ROADWAY RECONDITIONING, COMPACTION (d)	Mile	3.7		
7a.27	60201-0600 18 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot	1,164		
7a.28	60201-0800 24 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot	366		
7a.29	60201-1000 36 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot	46		
7a.30	60201-1200 48 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot	90		
7a.33	62501-0000 TURF ESTABLISHMENT, DRY METHOD SEEDING, DRY METHOD	Acre	12		

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Item No.	Description of Proposed Mandatory Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
	MULCHING, GOV'T FURNISHED SEED				
7a.34	63301-0000 BARRICADE MARKER SIGN (FBM-L) OR (FBM-R), METAL PANEL, TYPE III SHEETING	Each	2		
7a.35	63303-0900 MILE MARKER SIGN, ALUMINUM PANEL, TYPE 3 SHEETING	Each	2		
7a.37	63303-0901 ROAD CLOSURE SIGN, METAL PANEL, TYPE 3 SHEETING	Each	14		
7a.36	63308-0000 OBJECT MARKER SIGN (OM2-2V), METAL PANEL, TYPE III SHEETING	Each	1		
7a.39	63306-0100 U - CHANNEL POST	Each	9		
8a	Fuels Work/Reforestation				
8.1a*	Machine Pile	Acre	585		
8.4a*	Landing Cleanup	Acre	39.6		
8.5a	Manual Fireline	Feet	42,890		
8.15a	Planting	Acre	61		
9a	Temporary Road Construction and Obliteration				
9a.1*	New Temporary Road	Mile	1.8		
9a.2*	Existing Prism Temporary Road	Mile	2.5		
10a*	Erosion Control	Acre	88.3		

*Indicates line item may be eligible for price adjustment.

OPTIONAL WORK ACTIVITIES:

Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
Contract Area B- Jungle Bird Optional					
1b	Unit Recon, Layout, Boundary Identification, and GPS	Acre	1,913		
2b	Road Survey				
	Survey via motorized vehicle	Mile	10		
	Survey via foot	Mile	10		
3b	Marking Plan, Cruise Design/Plan, Cruise, and Processing	Acre	1,913		
4b.1*	Cut/Skid/Deck Included Timber (Saw and	High	649		

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
	Nonsaw): Tractor Units	Volume: Acre			
4b.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Medium Volume: Acre	670		
4b.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Low Volume: Acre	406		
5b.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	High Volume: Acre	94		
5b.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Medium Volume: Acre	58		
5b.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Low Volume: Acre	36		
6b.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	105,195		
6b.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6b.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	11,688		
7b	Road Reconstruction	Mile	10		
8b	Fuels Work/Reforestation				
8.1b*	Machine Pile	Acre	1,725		
8.4b*	Landing Cleanup	Acre	34.5		
8.5b	Manual Fireline	Feet	10,000		
9b	Temporary Road Construction and Obliteration				
9b.1*	New Temporary Road	Mile	1		
9b.2*	Existing Prism Temporary Road	Mile	3		
10b*	Erosion Control	Acre	191		
Contract Area C- Wooly Bully				Unit Price	Total Price
1c	Unit Recon, Layout, Boundary Identification, and GPS	Acre	1,323		

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
2c	Road Survey				
	Survey via motorized vehicle	Mile	27		
	Survey via foot	Mile	9		
3c	Marking Plan, Cruise Design/Plan, Cruise, and Processing	Acre	1,323		
4c.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	High Volume: Acre	560		
4c.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Medium Volume: Acre	545		
4c.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Low Volume: Acre	100		
5c.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	High Volume: Acre	100		
5c.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Medium Volume: Acre	5		
5c.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Low Volume: Acre	13		
6c.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	87,268		
6c.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6c.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	9,697		
7c	Road Reconstruction	Mile	36		
8c	Fuels Work/Reforestation				
8.1c*	Machine Pile	Acre	1205		
8.4c*	Landing Cleanup	Acre	26.5		
8.5c	Manual Fireline	Foot	12,355		
9c	Temporary Road Construction and Obliteration				
9c.1*	New Temporary Road	Mile	3		
9c.2*	Existing Prism Temporary Road	Mile	8		
10c*	Erosion Control	Acre	132		
Contract Area D- Ski Bird					

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
1d	Unit Recon, Layout, Boundary Identification, and GPS	Acre	3,313		
2d	Road Survey				
	Survey via motorized vehicle	Mile	46		
	Survey via foot	Mile	15		
3d	Marking Plan, Cruise Design/Plan, Cruise, and Processing	Acre	3,313		
4d.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	High Volume: Acre	1,105		
4d.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Medium Volume: Acre	979		
4d.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Low Volume: Acre	781		
5d.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	High Volume: Acre	197		
5d.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Medium Volume: Acre	235		
5d.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Low Volume: Acre	22		
6d.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	193,032		
6d.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6d.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	21,448		
7d	Road Reconstruction	Mile	61		
8d	Fuels Work/Reforestation				
8.1d*	Machine Pile	Acre	2,865		
8.4d*	Landing Cleanup	Acre	66		
8.5d*	Manual Fireline	Mile	56,232		
8.15d	Planting	Acre	31		
9d	Temporary Road Construction and Obliteration				
9d.1*	New Temporary Road	Mile	3		

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
9d.2*	Existing Prism Temporary Road	Mile	8		
10d*	Erosion Control	Acre	331		
Contract Area E- Cold Fir					
1e	Unit Recon, Layout, Boundary Identification, and GPS	Acre	2,714		
2e	Road Survey				
	Survey via motorized vehicle	Mile	52		
	Survey via foot	Mile	17		
3e	Marking Plan, Cruise Design/Plan, Cruise, and Processing	Acre	2,714		
4e.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	High Volume: Acre	762		
4e.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Medium Volume: Acre	1,268		
4e.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Low Volume: Acre	152		
5e.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	High Volume: Acre	217		
5e.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Medium Volume: Acre	163		
5e.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Low Volume: Acre	152		
6e.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	163,073		
6e.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6e.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	18,119		
7e	Road Reconstruction	Mile	69		
8e	Fuels Work/Reforestation				

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
8.1e*	Machine Pile	Acre	2,182		
8.4e*	Landing Cleanup	Acre	54		
8.5e	Manual Fireline	Mile	48,523		
8.15e	Planting	Acre	429		
9e	Temporary Road Construction and Obliteration				
9e.1*	New Temporary Road	Mile	3		
9e.2*	Existing Prism Temporary Road	Mile	8		
10e*	Erosion Control	Acre	271		
Contract Area F- Free Bird					
1f	Unit Recon, Layout, Boundary Identification, and GPS	Acre	2,916		
2f	Road Survey				
	Survey via motorized vehicle	Mile	56		
	Survey via foot	Mile	18		
3f	Marking Plan, Cruise Design/Plan, Cruise, and Processing	Acre	1,916		
4f.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	High Volume: Acre	1,948		
4f.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Medium Volume: Acre	435		
4f.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Low Volume: Acre	297		
5f.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	High Volume: Acre	174		
5f.2*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Medium Volume: Acre	17		
5f.3*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Low Volume: Acre	45		

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
6f.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	200,977		
6f.2*	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	Unest.		
6f.3*	Load/Haul/Road Maintenance Included Nonsaw Timber: Pulp Facility	Ton	22,330		
7f	Road Reconstruction	Mile	74		
8f	Fuels Work/Reforestation				
8.1f*	Machine Pile	Acre	2,680		
8.4f*	Landing Cleanup	Acre	58.3		
8.5f	Manual Fireline	Feet	27,350		
8.15f	Planting	Acre	547		
9f	Temporary Road Construction and Obliteration				
9f.1*	New Temporary Road	Mile	3		
9f.2*	Existing Prism Temporary Road	Mile	5		
10f*	Erosion Control	Acre	292		
Item 7- Optional Road Reconstruction ‘Menu’					
7a.1	15101-0000 MOBILIZATION	Lump Sum	5		
7a.2*	20101-0001 CLEARING AND GRUBBING, DISPOSAL METHOD (b), COMPACTION (g)	Mile			
7a.3*	20203-0000 SELECTIVE CLEARING, TYPE ROADSIDE, DISPOSAL METHOD (f), COMPACTION (g)	Mile			
7a.4*	20210-0000 SPECIAL CLEARING AND GRUBBING, TYPE ROADWAY, MERCHANTABLE TIMBER DISPOSAL METHOD (e), SLASH DISPOSAL METHOD (g), COMPACTION METHOD (g).	Mile			
7a.5*	20207-0000 SELECTIVE CLEARING AND GRUBBING, TYPE ROADWAY, DISPOSAL METHOD (e), COMPACTION (g)	Mile			
7a.6*	20301-1900 REMOVAL OF PIPE CULVERT, DISPOSAL METHOD A, COMPACTION (g)	Each			

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
7a.7*	20401-0000 ROADWAY EXCAVATION, COMPACTION (d), TOLERANCE CLASS A	Cubic Yard			
7a.8*	20420-0000 EMBANKMENT CONSTRUCTION, COMPACTION (b) PLACEMENT METHOD 2, TOLERANCE CLASS A	Cubic Yard			
7a.9*	20421-0000 ROCK EXCAVATION, COMPACTION (d), TOLERANCE CLASS A	Cubic Yard			
7a.10*	20425-1000 DRAINAGE EXCAVATION, TYPE ROADSIDE DITCH, TOLERANCE CLASS A, COMPACTION (g)	Foot			
7a.11*	20425-2000 DRAINAGE EXCAVATION, TYPE OUTLET DITCH, TOLERANCE CLASS A, COMPACTION (g)	Foot			
7a.12*	20425-2001 DRAINAGE EXCAVATION, TYPE II DRAIN DIP, TOLERANCE CLASS A, COMPACTION (e)	Each			
7a.13*	20425-2002 DRAINAGE EXCAVATION, TYPE CATCH BASIN, TOLERANCE CLASS A, COMPACTION (g)	Each			
7a.15*	20441-0001A WASTE END HAUL / AGGREGATE HAUL – END DUMP	\$/CY/Mile			
7a.16*	20441-0001B WASTE END HAUL / AGGREGATE HAUL – BELLY DUMP/SIDE DUMP	\$/CY/Mile			
7a.17*	25101-0100 PLACED RIPRAP, CLASS 3, GOV'T SOURCE	\$/CY/Mile			
7a.18*	25105-0300 PLACED RIPRAP, CLASS 3, COMMERCIAL SOURCE	Cubic Yard			
7a.19	26801-0000 HORIZONTAL DRAIN PIPE	Foot			
7a.20	26802-0000 COLLECTOR SYSTEM PIPE	Foot			
7a.21	30103-1000A AGGREGATE BASE COURSE, GRADING C, (b) COMPACTION B (GOV'T SOURCE)	\$/CY/Mile			
7a.22	30103-1000B AGGREGATE BASE COURSE, GRADING C, (b) COMPACTION B (COMMERCIAL SOURCE)	Cubic Yard			
7a.23	30112-0000A AGGREGATE SURFACE COURSE, GRADING F, (b) COMPACTION B	\$/CY/Mile			

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	(GOV'T SOURCE)				
7a.24	30112-0000B AGGREGATE SURFACE COURSE, GRADING F, (b) COMPACTION B (COMMERCIAL SOURCE)	Cubic Yard			
7a.25*	30301-5000 ROADWAY RECONDITIONING, AGGREGATE SURFACE, COMPACTION (d)	Mile			
7a.26*	30301-6000 ROADWAY RECONDITIONING, COMPACTION (d)	Mile			
7a.27	60201-0600 18 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot			
7a.28	60201-0800 24 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot			
7a.29	60201-1000 36 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot			
7a.30	60201-1200 48 INCH PIPE CULVERT, CORRUGATED STEEL, 16 GAGE, COMPACTION METHOD (h)	Foot			
7a.31	60705-0000 REPAIR DRAINAGE STRUCTURE	Each			
7a.32	61902-1400 STEEL 16' FS SWING GATE	Each			
7a.33	62501-0000 TURF ESTABLISHMENT, DRY METHOD SEEDING, DRY METHOD MULCHING, GOV'T FURNISHED SEED	Acre			
7a.34	63301-0000 BARRICADE MARKER SIGN (FBM-L) OR (FBM-R), METAL PANEL, TYPE III SHEETING	Each			
7a.35	63303-0900 MILE MARKER SIGN, ALUMINUM PANEL, TYPE 3 SHEETING	Each			
7a.36	63308-0000 OBJECT MARKER SIGN (OM2-2V), METAL PANEL, TYPE III SHEETING	Each			
7a.37	63303-0901 ROAD CLOSURE SIGN, METAL PANEL, TYPE 3 SHEETING	Each			
7a.38	63306-1700 POST, WOOD, 4-INCH X 4-INCH	Each			
7a.39	63306-0100 U - CHANNEL POST	Each			
7a.40	30110-0000 AGGREGATE SURFACE COURSE	Ton	50,000		

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	– CRUSHING – GRADATION F				
7a.41	30101-1000 AGGREGATE BASE COURSE – CRUSHING – GRADATION C	Ton	10,000		
7a.42	61903-0001 CATTLE GUARD – STEEL	Foot			
7a.43	57801-0000 PRECAST STRUCTURAL CONCRETE – CG ABUTMENT	Foot			
7a.44	41401-2000 CRACKS, CLEANING AND SEALING	Linear Foot	271,000		
7a.45	41401-3000 CRACKS, CLEANING AND FILLING	Linear Foot	14,000		
Item 8- Optional Fuels Work/Reforestation ‘Menu’					
8.1*	Machine Pile	Acre	Unest.		
8.2*	Tether Pile >35% Slope	Acre	Unest.		
8.3	Hand Pile and Covering	Acre	Unest.		
8.4*	Landing Cleanup	Acre	Unest.		
8.5	Manual Fireline	Foot	Unest.		
8.6*	Machine Fireline	Mile	Unest,		
8.7	Slashing	Acre	3619		
8.8*	Mastication Type 1	Acre	Unest.		
8.81*	Mastication Type 2	Acre	Unest.		
8.82*	Mastication Type 3	Acre	1097		
8.9	Leave Tree Protection	Acre	1068		
8.10*	Chipping	Acre	TBD		
8.11*	Biomass Removal	Ton	TBD		
8.12	Precommercial Thinning Type 1	Acre	550		
8.13	Precommercial Thinning Type 2	Acre	225		
8.14	Precommercial Thinning Type 3	Acre	225		
8.15	Planting	Acre	TBD		
Timber Salvage-Contract Area X					
1x	Unit Recon, Layout, Boundary Identification, and GPS	Acre	TBD		
2x	Road Survey	Mile	TBD		

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Item No.	Description of Proposed Optional Work Activities	Unit	Estimated Quantity	Unit Price	Total Price
3x	Cruise Design Plan, Cruise, and Processing	Acre	TBD		
4x.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Tractor Units	Acre	TBD		
5x.1*	Cut/Skid/Deck Included Timber (Saw and Nonsaw): Skyline/Tether Units	Acre	TBD		
6x.1*	Load/Haul/Road Maintenance Included Sawlog Timber	Ton	TBD		
6x.*2	Load/Haul/Road Maintenance Included Nonsaw Timber: Local Facility	Ton	TBD		
7x*	Road Reconstruction	Mile	TBD		
8x*	Fuels Work/Reforestation	Acre	TBD		
9x*	Temporary Road Construction and Obliteration	Mile	TBD		
10x*	Erosion Control	Acre	TBD		

*Indicates line item may be eligible for price adjustment.

TIMBER/PRODUCT REMOVAL PRICE SCHEDULE:

SPECIES	PRODUCT	ESTIMATED QUANTITY	UNIT OF MEASURE	MINIMUM ACCEPTABLE OFFER	OFFER (FLAT)	TOTAL OFFER
Jungle Bird Contract Area						
Grand fir and Others	Sawtimber	76,017	Ton			
Ponderosa Pine	Sawtimber	10,359	Ton			
Combined Softwood	Non-saw	9,284	Ton			

3. LAND MANAGEMENT ACTIVITIES.

The Forest Service is executing this procurement under the stewardship contracting authority provided under Section 8205 of Public Law 113-79, the Agricultural Act of 2014 as amended under Section 204 & 207 of the Consolidated Appropriations Act (Omnibus Bill 2018). Stewardship authority grants the Forest Service Chief or designee the authority to aggregate contractual requirements into stewardship projects.

Performance of land management activities shall be in accordance with Project Description and Work Specifications. Payment for Land Management Work Activities in **Schedule of Items** will be made in Stewardship Credits and Appropriated Funds.

All Base Work Activities (Mandatory) shall be performed. Optional activities are listed in order of planned priority. Award may be made for optional items in any order that the Contracting Officer determines is in the best interest of the Government.

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4. SCOPE OF CONTRACT

- (a) The intent of the project is to mitigate wildfire risk and increase resilience to disturbances from insect and disease across the End of the World project area. The G-Z contracting tool will help increase the pace and scale of restoration beyond the forest's current capacities. This contract is planned to implement the following work activities:
1. Timber Sale Preparation
 - a. Contractor will complete layout of harvest units. Units must be within project approved NEPA boundaries and avoid exclusion areas such as riparian areas, protected areas, private property, etc. Boundaries may be identified by paint, flagging, or be virtual unless they are adjacent to private property or pre-identified archaeological sites. Contractor will determine cutting specifications that may include marking, DxP, DxD, or a combination of methods to accomplish the Silvicultural prescriptions provided by the Forest Service.
 - b. During layout, the Contractor will identify and GPS pre commercial thinning (PCT) units. PCT survey templates provided by the Forest Service.
 - c. Contractor will layout, measure and record tracks for temporary roads utilizing Geographic Positioning System (GPS) tools. Temporary roads will be limited in miles for the project area and require recontouring post-harvest. Existing non-system road prisms may be used in addition to temporary road quantities and will be recontoured after use. Temporary water crossings are not permitted.
 - d. Harvest units will be GPS'd to Forest Service specifications individually with delineations for logging systems and volumes per acre (Tons) to be delivered to the Forest Service for activity tracking. Contract Area maps will be developed by the Contractor utilizing templates provided by the Forest Service for individual Contract Areas.
 - e. In Optional Contract Areas, volume determination will be completed on a contract area basis that meets or exceeds Forest Service R1 cruise standards. Cruise plans shall be accepted by the Forest Service prior to completing volume determinations. Collected data such as plot locations, plot data, and processed data shall be provided to the Forest Service in the format specified. Forest Service may elect to do a check cruise. Forest Service will appraise contract areas separately utilizing the R1 Residual Value Appraisal.
 2. Road Survey
 - a. Contractor will survey haul routes to identify work necessary to facilitate log haul, complete road maintenance plans, and develop worklists for Forest Service review. Templates will be provided by the Forest Service.
 3. Timber Removal and Haul
 - a. Timber removal will be limited to two contract areas operating at time to ensure clean-up type activities are kept current and for control of operations. Operating in more than two may be done by agreement.
 - b. Timber cutting, skidding, and decking for sawlog and nonsaw will be broken into three separate categories for tractor and skyline/tether harvest systems based on volume per acre as follows:
 - c. Helicopter logging will not be considered in this contract unless the Contractor provides a cost advantage to the Government.
 - d. Loading and hauling will be broken into sawlog and nonsaw for multiple delivery points.

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- e. Road maintenance will be performed by the Contractor and will be commensurate with use.

4. Haul Roads

- a. Road work may consist of maintenance, reconstruction, decommissioning, and obliteration.
- b. Roadwork for the contract will be limited to the minimum necessary to facilitate safe haul.
- c. Forest Service Road (FSR) 221 has a limited operating period from 12/1-4/1 annually for winter recreation, Use of FSR 221 during this period is subject to agreement and will require snow plowing. Break-up limits will be implemented depending on seasonal conditions to protect pavement on FSR 221. Alternate haul routes may be utilized within the project, if agreed to between the Contractor and Forest Service.

5. Fuels Work, Reforestation and Erosion Control

- a. Reduce natural and activity generated fuel loading within the project area.
- b. Plant regeneration harvest units with early-seral species to increase insect and disease resiliency.
- c. Implement a variety of control measures to prevent erosion within the project area.
- d. Thin small diameter trees to specified stocking levels.

6. Catastrophic Event

- a. Respond quickly to changed conditions that may affect the End of the World project area by the inclusion of salvage operations and suppression repair activities.
- (b) Resulting Contract – Any resultant contract will be a firm fixed price commercial services contract with requirements for timber removal.
- (c) Project Location- Approximately 8 air miles south of Grangeville, Idaho.
- (d) Under this contract, “Contractor’s Operations” shall include activities of or use of equipment of Contractor, Contractor’s employees, agents, Subcontractors, or their employees or agents, acting in the course of their employment in operations hereunder on National Forest lands or within Forest Service protection boundary (unless acting under the immediate supervision of Forest Service).
- (e) Contractor’s Operations shall be conducted in a workmanlike and orderly manner. The timing of required Forest Service designation of work on the ground and the performance of other Forest Service work shall not be such as to cause unnecessary delay to Contractor.

5. FAR 52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2025)

a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

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(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.*, use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment—*

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR Part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been

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made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest*.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

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(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

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(o) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

- (i) Any such clause is unenforceable against the Government.
- (ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.
- (iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

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(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

ADDENDUM TO FAR 52.212-4

6. SPECIFICATIONS

General specifications for each Contract Activity individually described by an item number in the Schedule of Service Items can be found in Appendix A. Specifications for timber removal can be found in Appendix B and associated road plans and specifications in Appendix C for Stewardship related projects. Incidental construction or reconstruction specified road work plans, drawings, exhibits, and specifications can be found in Appendix D.

7. CONTRACTOR QUALITY CONTROL INSPECTION SYSTEM

The Contractor shall identify the quality control inspection system it will use to ensure that contract specifications will be achieved. At no time shall the contractor rely upon Government inspections to provide notification of unsatisfactory performance. The Contractor shall produce written inspection records in a format and at times and places satisfactory to the Contracting Officer. Inspection records shall be made available upon request of the Contracting Officer and be maintained until the date of contract closure. The Contracting Officer may observe the Contractor's inspection at any time and shall otherwise have unlimited access to the inspection data.

8. GOVERNMENT QUALITY ASSURANCE SURVEILLANCE PLAN

Quality assurance plans specific to individual items will be found in Appendix A.

9. PERIOD OF PERFORMANCE

The Contractor shall be required to (a) commence work under this contract within **10 calendar days** after receipt of Notice to Proceed for specified work items, (b) prosecute the work diligently, and (c) complete all work no later than **September 15, 2036**. The time stated for completion shall include final cleanup of the premises.

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10. POST AWARD CONFERENCE

A post award conference with the successful offeror is required. It will be scheduled within **30** days after the date of contract award. The conference will be held at **Bitterroot National Forest Supervisors Office.**

11. PREWORK CONFERENCES

Annually, prior to commencement of work, a prework conference will be held to discuss contract terms and work performance requirements. Also at this meeting such things as responsibility under OSHA, and procedures for how undesignated timber that may have to be added to the contract (including danger trees) shall be discussed and documented.

12. CONTRACT OPERATIONS SCHEDULE

Contractor shall, before commencing operations, provide in writing an annual Operating Schedule of anticipated major activities and needs for logging Included Timber and completing stewardship projects, such as logging, road maintenance, and construction. Upon reasonable notice to Forest Service, such a schedule shall be subject to modifications necessitated by weather, markets, or other unpredictable circumstances.

Contractor's Operations may be conducted outside Normal Operating Season. "Normal Operating Season" is the period(s) beginning and ending on the dates stated below.

Timeframe	Restriction Description
6/15-10/15 Annually	Normal Operating Season
12/1-4/1 Annually	FSR221 Grangeville Salmon Road is closed to vehicular traffic 12/1-4/1.
Weekends and Federal Holidays	Hauling Prohibited on Weekends (all day Saturday & Sunday) and Federal Holidays from Memorial Day through December 1st.
Award through October 30, 2027	Completion of road reconstruction requirements in the Jungle Bird contract Area

Completion date for road reconstruction is binding on the party that constructs road, whether Contractor or Forest Service. Contracting Officer shall modify the completion date in writing to conform to the approved plan of operations at the request of Contractor.

When Contractor elects Forest Service construction of Specified Roads shown in sale advertisement, Forest Service may adjust construction completion date when road construction is interrupted or delayed for causes that qualify for an adjustment of the completion date of the road construction contract. When qualifying interruptions or delays of road construction occur, Forest Service shall evaluate such occurrences and document any findings. The current status of any adjustment shall be available to Contractor on request. Promptly after the end of Normal Operating Season in which qualifying days occur, Forest Service shall give Contractor written notice of (a) number of qualifying days claimed, and (b) new construction completion dates.

Forest Service shall in no way be responsible for any delay or damage caused by road contractor in performing the road construction except such delay as may be the fault or negligence of Forest Service.

As used in this solicitation, construction of a road is completed when:

(a) Contractor constructs Specified Roads and Forest Service furnishes Contractor with written notice of acceptance, or

(b) Forest Service constructs road and furnishes Contractor with written notice authorizing use of road.

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Contractor shall not use a road that Contractor has elected for Forest Service to construct, until construction is complete, and Forest Service furnishes Contractor with written notice authorizing use of road. **SCHEDULES AND REPORTS**

Contractor shall provide the following submittals as stated below unless otherwise mutually agreed upon. The Contractor shall update all submittals as needed, or as required by the CO, but in no case less than once per calendar year on a date specified by the Contracting Officer:

ITEM DESCRIPTION	SUBMITTAL DUE
Proposed Operation Plan (Overall Schedule): The Contractor shall prepare and submit one electronic copy of a practicable schedule showing the order in which the Contractor proposes to perform the work, and the estimated starting and completion dates of various phases of the work. The schedule shall comply with the contract time requirements in the contract.	With proposal
Schedule for Construction Items: The Contractor shall comply with the requirements of FAR 52.236-15 – Schedules for Construction Contracts.	At prework meeting
Subcontractors: List of proposed sub-contractors and their intended work. Sub-contractors must have Contracting Officer's written approval prior to starting work on the project. Submit on Standard Form 1413.	With proposal
Traffic Control Plan. The Contractor shall prepare and submit a Traffic Control Plan detailing conformance with OSHA requirements, MUTCD requirements, and all other contract requirements, including, but not limited to the requirements included in the Appendices, if any.	At prework meeting
Safety Plan. The Contractor shall comply with the requirements of the solicitation's safety clause for all activities under this contract.	With proposal
Quality Control Plan. Submit original with proposal. Any updates need to be provided for approval to the CO.	With proposal
Small Business Subcontracting Plan. Applies to large businesses only- A Draft Small Business Subcontracting Plan is required with any proposal from a large business. Refer to 52.216-9 Small Business Subcontracting Plan for requirements.	With proposal
Annual Operating Plan. Contractor shall submit an annual plan listing units, roads and other information required in the Appendices.	Beginning of every operating season annually
Fire Control Plan. Contractor shall submit plan in accordance with requirements in the Appendices.	At prework meetings
Designation of Contractor personnel describing responsibilities and authorities	At prework meeting
Aggregate Gradation and Quality. Test results certifying material meet specifications. Shall be turned in to COR a minimum of 7 days before placement for review and approval.	Before Placement
Culvert Certifications. Certification of gauge. Shall be turned in to COR a minimum of 7 days before placement for review and approval.	Before Installation
Weed Free Material Source. As applicable for reconstruction materials. Shall be turned in to COR a minimum of 7 days before placement for review and approval.	Before placement
BioBased Report. Submit annually via SAM.gov and provide a copy to the CO.	October 31 Annually

All schedules and reports shall be submitted to the Contracting Officer, unless the Contracting Officer directs the Contractor to submit any schedules or reports directly to the Contracting Officer's Representative.

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14. PAYMENT

It is anticipated that funds will be exchanged in the performance of this contract because the value of the timber will not completely offset the value of the work to be performed. When payment is made to the contractor for work performed, it will be made in accordance with the specifications set forth under the payment methods provisions in Appendix A. When harvesting operations are underway, the value of work completed and timber removed will be documented monthly in the Forest Products Financial System which will produce a Statement of Accounts.

15. STEWARDSHIP CREDITS

Stewardship Credits are credits that are earned and established when work listed in the Schedule of Supplies/ Services has been performed and accepted. Stewardship credits may be cash or non-monetary (product value) and shall be earned at the rate as shown in award documents. Earned non-monetary credits may be used to pay for timber value included in the Schedule of Items. Unless otherwise indicated in the Schedules, credits will be earned based upon Actual Quantities accomplished and accepted.

16. ESTABLISHMENT OF STEWARDSHIP CREDITS

Notwithstanding references to payments in “Payment” clauses or provisions of this contract, payment for Stewardship Activities will be made with Stewardship Credits as indicated in the award document.

Stewardship Credits will be established on a monthly basis as work is accepted. Stewardship credits will be established for the number of units of each activity that have been completed and accepted. Acceptance may be for all, or a reasonable portion of, any specific activity.

Invoices to establish cash credits (cash payment) are to be submitted electronically via the Invoice Processing Platform (IPP).

Invoices to establish non-monetary credit are to be submitted to the Contracting Officer Representative (COR) identified on award documents. These credits will be used to off-set the amount required to be paid for the forest products value when earned prior to the cutting of Included Timber.

17. TIMBER PAYMENT GUARANTEE

(1) General—(a) To guarantee payment for timber scheduled for removal under the IRSC, Contractor may earn Stewardship Credits in advance of removal or provide a Timber Payment Guarantee in the form of an acceptable surety payment bond, cash payment, or a deposit in a Federal Depository negotiable securities of the United States.

(b) Any earned Stewardship Credits and alternate Timber Payment Guarantee together will maintain a minimum unobligated balance equal to the applicable charges for timber the Forest Service estimates will be cut in 60 calendar days plus the value of any outstanding charges, or equal to the total value of the timber that has not been paid for.

(c) Securities shall be deposited through the Contracting Officer accompanied by a power of attorney and agreement authorizing the bond-approving officer to sell or collect such securities if payment is not made within 15 days of billing by Forest Service. The penal sum of such surety bond or the market value at time of deposit of such negotiable securities shall be the maximum amount of the payment guaranteed.

(2) A Timber Payment Guarantee for a single contract shall be provided utilizing FS Form 6500-12.

(3) Blanket Surety Bond—(a) Contractor may furnish an acceptable bond, or deposits securities, to guarantee payment for timber from multiple contracts. Contractor shall not start cutting hereunder until this contract receives an allocation that will meet the obligation for payment guarantee.

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(b) The amount of such bond or deposited securities shall be allocated to such contracts by the Forest Service. The Contractor will provide the contact information for the Forest Service representative administering the Blanket Surety Bond.

(c) When there is to be no timber cutting hereunder for 30 days or more and payment of current charges has been made, the allocation to this contract shall be reallocated to other contracts at Contractor's request.

(d) A Timber Payment Guarantee for multiple contracts (Blanket Guarantee) shall be provided utilizing FS Form 6500-12a.

(4) Letters of Credit for Payment Bond—Contractor may use letters of credit in lieu of a surety bond for payment bond purposes when approved by Contracting Officer.

18. EXCESS STEWARDSHIP CREDITS

In the event there are excess (unused) established Stewardship Credits when all of the included timber has been cut and removed the Forest Service, at its option, shall either add more timber or make cash payment for the unused credits.

19. EXCESS TIMBER VALUE

In the event the value of the included timber exceeds the total value of all of the mandatory activities plus the ordered Optional activities, the Contractor shall make cash payment for the excess timber value.

20. REFUND OF EXCESS CASH

If at any time the credit balance of the Integrated Resource Statement of Account exceeds the charges for timber removed to date and for timber that the Forest Service estimates will be cut within the next 60 calendar days, any portion of such excess from cash in the account shall be refunded if requested by Contractor. If no cutting is planned within the next 60 calendar days, refund of the entire unencumbered cash balance may be made. After a refund, deposits shall be made to meet the requirements of the clause entitled, "TIMBER PAYMENT GUARANTEE" before additional timber may be cut.

21. FOREST PRODUCT APPRAISAL METHODOLOGY

For all optional contract areas B-F where work item 3- Cruise Design, Plan, and Processing may be exercised to make a volume determination, the Forest Service will complete an independent Residual Value appraisal to determine fair market value (FMV) within twenty (20) working days after acceptance of the cruise for the contract area subdivision, unless otherwise agreed. Upon issuance, the Contractor shall, within twenty (20) working days, either accept the FMV or submit a written objection stating the specific elements disputed and providing supporting documentation (recent comparable sales, cost data, haul route/miles, species/grade evidence, BDT/green-ton conversions, etc.). The Contracting Officer will conduct an appraisal reconsideration and may adjust the appraisal or, at the Government's discretion, obtain a third-party review. If agreement is reached, the parties will execute a bilateral modification to incorporate the additional timber. If the Contractor does not accept the CO's determination within twenty (20) working days, the Forest Service may remove the contract area and offer the timber for sale through open competition.

Minimum acceptable offer rates for Timber and Product removal were determined using standard Forest Service Residual Value Appraisal methodologies.

22. TIMBER PRODUCT VOLUME ESTIMATION

Quantities listed in Mandatory Timber/Product removal schedule were cruised to R1 sale error standards. Volume quantities in Optional Contract Areas B-F were determined utilizing a combination of Lidar data and cruise plot

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and are made available with the understanding that values shown are Forest Service estimates and are not guaranteed. Contractors are urged to examine the contract areas and make their own estimates.

23. FINAL PAYMENT - RELEASE OF CLAIMS

The Government shall pay the full amount due the Contractor under this contract after—

- (1) Completion and acceptance of all work;
- (2) Presentation of a properly executed voucher; and
- (3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release.

24. AGAR 452.204-70 MODIFICATION FOR CONTRACT CLOSEOUT (JAN 2025)

Upon contract closeout for contracts utilizing anything other than cost reimbursement:

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (CO) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The CO shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than \$1000 remain on the contract, the CO shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The CO may also request a “Contractor Release of Claims” be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the CO within 60 days, the CO shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than \$1000 remain on the contract, the CO shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a “Contractor Release of Claims” and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the CO within 120 days, the CO shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

25. PHYSICAL DATA

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of, or conclusion drawn from the data or information by the Contractor.

- (a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by visual observation.
- (b) Additional informational material made available to contractors including but not limited to: environmental documentation, timber cruise data, maps, access permits, etc.

26. DATA RIGHTS

The Contractor shall be responsible for properly protecting all information used, gathered, or developed as a result of work under items 3 and 4. The Contractor shall also protect all unclassified Government data, equipment, etc., by treating information as sensitive business, confidential information, controlling and limiting access to the information, and ensuring the data and equipment are secured within their facility.

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The Government has unlimited rights to all documents / material produced under this contract. All documents and materials produced under this contract shall be Government owned and the property of the Government with all rights and privileges of ownership / copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the CO. All materials supplied to the Government shall be sole property of the Government and may not be used for any other purpose. This right does not abrogate any other Government rights.

Cooperation may include providing relevant documentation showing proof of compliance with federal and agency requirements and rendering other assistance as deemed necessary.

27. RELEASE OF INFORMATION

No USDA Forest Service data shall be divulged to any unauthorized person, for any purpose. Therefore, the Contractor shall clear with the Contracting Officer any public release of any information. Information includes news stories, articles, sales and marketing information, advertisements, etc. All requests for public release of information shall be submitted via email to the COR and the Contracting Officer and addressed to:

USDA Forest Service
Procurement and Property Services
Stewardship Contracting Branch
1400 Independence Ave. SW, MS-1138
Washington DC 20250-1138

The Contracting Officer shall submit the Contractor's Request for Press Release to the Office of Communications for approval. The Contractor shall not release any information to the public without official OC approval from the Contracting Officer.

28. RETURN OF DATA

Data and information developed, entered, and processed under this contract shall be considered Government property. All data and/or materials provided to the contractor to accomplish individual deliverables, or data generated as a result of accomplishing individual deliverables, shall be returned to the Government or destroyed at the end of each applicable deliverable, unless the contractor specifically requests and receives approval from the COR to maintain copies of this data. The Contractor is responsible for distributing data and/or materials given to members of the contractor's team. None of this data will be released to any other Government organization or other organizations of individuals without the express written approval of the Contracting Officer unless otherwise specified.

29. GEOSPATIAL DATA

All spatial data collected or derived, directly or indirectly, using federal funds shall include metadata compliant with Federal Geographic Data Committee (FGDC) standards. This requirement applies to all geospatial data furnished to the Government under Work Item 3.

[Geospatial Metadata — Federal Geographic Data Committee \(fgdc.gov\)](https://www.fgdc.gov/)

30. USE OF PREMISES

(a) Before any camp, quarry, borrow pit, storage, detour, or bypass site, other than shown on drawings, is opened or operated on USDA land or lands administered by the USDA, the Contractor shall obtain written permission from the Contracting Officer. A camp is interpreted to include a campsite or trailer parking area of any employee working on the project for the Contractor. (b) Unless excepted elsewhere in the contract, the Contractor shall (i) provide and maintain sanitation facilities for the work force at the site and (i) dispose of solid waste in accordance

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with applicable Federal, State and local regulations. Such permission, if granted, will be without charge to the Contractor.

The Contractor shall comply with the regulations governing the operation of premises which are occupied and shall perform his contract in such a manner as not to interrupt or interfere with the conduct of Government business.

The Contractor shall request permission (in writing) from the appropriate Ranger District to use campsites. If permission is granted, the District Ranger's letter shall specify all conditions and requirements.

It is further stipulated that in addition to clean-up of any camp sites, the Contractor is required to remove all their equipment from National Forest land before final acceptance and payment of the project.

Portable chemical toilets, self-contained holding tanks, approved pit or vault toilets which meet State Code are required.

31. KEY PERSONNEL

(a) The Contractor shall assign to this contract the following key personnel:

- Overall Project Manager
- Logging Supervisor
- Road Supervisor (for survey, reconstruction, maintenance activities)
- Sale Preparation Supervisor (for sale recon, layout, and cruising activities)
- Individual Sub-Manager- Individuals supervising the individual sub-contractors for work items not covered by personnel noted previously herein.

(b) During the first 90 days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 90-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 15 days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within 15 calendar days after receipt of all required information of the decision on substitutions. The contract will be modified to reflect any approved changes of key personnel.

Key Personnel- Representatives:

Unless otherwise agreed, Contractor shall designate, in writing, a representative who is authorized to receive notices in regard to performance under this contract and take related action. In no case shall Contractor designate any representative to this contract who is currently debarred, proposed for debarment, or suspended by the Federal Government. Contractor's representative shall provide a copy of the contract to Contractor's field supervisor and persons authorized to assume responsibilities in the field supervisor's absence. Prior to initial operations and after shutdowns of 10 days or more, the Contractor's representative shall notify Forest Service 2 days before, excluding weekends and Federal holidays, any operations resuming in the Contract Area.

The Contractor's representative shall designate, in writing, a field supervisor, one of whose responsibilities shall be on-the-ground direction and supervision of Contractor's Operations. The field supervisor shall be readily available to the area of operations when operations are in progress and shall be authorized to receive notices in regard to performance under this contract and take related action. The responsibilities of the field supervisor shall

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include the safeguarding of National Forest resources and performance within the terms of the contract. The Contractor's representative will furnish the Forest Service with the names of persons authorized to assume responsibilities in field supervisor's absence. Such delegations may be made as part of Contractor's annual Operating Schedule.

Unless the Contracting Officer designates another Forest Service representative and notifies the Contractor in writing, the COR is the representative of Forest Service. The Forest Service representative shall:

- (a) Receive notice in regard to performance under this contract,
- (b) Take action in relation to this contract, and
- (c) Be readily available to the area of work activities and logging operations.

The Contracting Officer shall designate other on-the-ground representatives in writing along with their specific contractual responsibilities and authority. Representatives with authority delegated in writing are the only Forest Service personnel authorized to provide notice or take related actions under the contract. Such a delegation shall be made within 60 days of contract award.

32. EMPLOYMENT OF ELIGIBLE WORKERS

This contract is subject to the Agricultural Worker Protection Act (MSPA), 29 United States Code (U.S.C) 1801-1872, and to the U.S. Department of Labor (DOL) regulations implementing MSPA 29 Code of Federal Regulations (CFR) Part 500. MSPA eliminates activities detrimental to migrant and seasonal agricultural workers, requires registration of Farm Labor Contractors, and ensures necessary protection for the workers. Information regarding MSPA can be found at <https://www.dol.gov/agencies/whd/agriculture/mspa>.

If workers are hired under the H-2B program, (8 CFR Section 274A provisions of the Immigration and Nationality Act (INA) for the admission of nonimmigrants to the U.S. to perform temporary labor or services) a Temporary Employment Certification issued by the Office of Foreign Labor Certification (OFLC) in the Department of Labor Employment and Training Administration is required.

For further information on the requirements of the H-2B program, visit OFLC's website at <https://www.dol.gov/agencies/eta/foreign-labor>.

Compliance with MSPA and the INA is a material condition of this contract. If the contractor employs any unauthorized worker(s) during the performance of this contract that violates section 274A of the INA, the Government may terminate the contract, in addition to other remedies or penalties prescribed by law.

1. Definitions

- A. H-2B worker: as used in this part means a nonimmigrant holding a visa authorizing the individual to legally work in the US to perform temporary labor or services. A worker with an H-2B visa (H-2B worker) may also be considered a migrant agricultural worker under MSPA depending on the type and nature of work performed.
- 2. Migrant Agricultural Worker and Seasonal Agricultural Worker: as used in this part means individuals employed for agricultural (including forestry) work on a seasonal or temporary basis.
 - a) A worker, moving from one seasonal activity to another, is employed on a seasonal basis even though the worker may continue to be employed during a major portion of the year.
 - b) An overnight absence from the migrant workers permanent place of residence is required.
 - c) Members of the contractor's immediate family are not considered migrant or seasonal workers. Immediate family includes:
 - Spouse

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- Children, stepchildren, or foster children
 - Parents, stepparents, or foster parents, or
 - Brothers and sisters
3. Farm Labor Contractor (FLC). As used in this part means a person including an individual, partnership, association, joint stock company or a corporation, who, for any money or other valuable consideration, paid or promised to be paid, performs any recruiting, soliciting, hiring, employing, furnishing, or transporting of any migrant or seasonal agricultural worker.
4. Registration Requirements
- A. Any contractor providing or hiring H-2B nonimmigrants for work under this contract shall provide a copy of their Temporary Employment Certificate. General information about the H-2B program can be found on Fact Sheet # 78 at <https://www.dol.gov/agencies/whd/fact-sheets/78-h2b-overview>. Contractors can apply for the certificate online through the US DOL Foreign Labor Application Gateway (FLAG) System at <https://flag.dol.gov>.
 - B. Any contractor who meets the definition in (2.c.) above providing or hiring migrant or seasonal workers to perform agricultural or manual forestry work shall first obtain a Federal DOL Farm Labor Contractor Certificate of Registration (https://www.dol.gov/whd/forms/fts_wh530.htm). The contractor shall carry the certificate at all times while engaged in contract performance and shall display it upon request. Any of the contractor's employees who perform any one or more of the activities defined as an FLC in paragraph (2.c.) must have their own FLC Employee Certificate. General information about MSPA can be found on Fact Sheet #49 at DOL Wage and Hour Division's webpage <https://www.dol.gov/sites/dolgov/files/WHD/legacy/files/whdfs49.pdf>.

Certifications: The Contractor shall provide applicable H-2B Temporary Employment Certificate and/or Farm Labor Contractor Certificate as part of their representations, certifications, and acknowledgements. Subcontractor(s) meeting the definitions above shall follow the same requirements as the Prime Contractor. It is the Prime Contractor's responsibility to ensure the Subcontractor's information is provided to the Contracting Officer.

5. Worker Protections

- A. Worker Information Posters
 - a) A contractor who uses the H-2B program to meet its temporary employment needs must post and maintain the H-2B poster (WH-1505) in a conspicuous location accessible to workers at the job site.
 - b) The contractor shall display and maintain the MSPA poster (WH-1376) on the job site in a conspicuous location accessible to workers during the contract performance period.
- B. Personal protective equipment
 - a) 29 CFR 1910 Subpart I, OSHA's General Industry personal protective equipment (PPE) standard contains the general requirements for the provision of personal protective equipment and requires employers to perform a hazard assessment to select appropriate PPE for hazards that are present or likely to be present in the workplace. OSHA requires that many categories of personal protective equipment meet or be equivalent to standards developed by the American National Standards Institute (ANSI).
 - b) Before a worker begins operating equipment, the contractor shall train the workers on the safe operation and use of the equipment

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- c) The contractor shall provide the appropriate personal protective equipment for the work required to be performed in the contract, wherever necessary by reason of hazards or processes encountered that may cause injury or impairment in the function of any part of the body. Except for foot protection, all PPE must be provided by the employer at no cost to the employee. Includes:
 - 1. Head Protection
 - 2. Hearing Protection
 - 3. Eye/Face Protection
 - 4. Leg Protection
 - 5. Foot Protection
 - 6. Hand Protection
- d) PPE must be sanitary and in reliable condition. Do not use defective or damaged PPE. PPE must be inspected prior to use on each work shift to ensure it is in serviceable condition.
- e) A checklist of applicable PPE guidelines typical for the work performed under this contract is provided. This does not relieve the contractor of the responsibility of performing a risk assessment or providing the necessary PPE for their operations.

References:

<https://www.osha.gov/personal-protective-equipment> or OSHA 3151-12R 2003 Personnel Protective Equipment Booklet. The booklet can be found at <https://www.osha.gov/Publications/osh3151.pdf>

- f) Manual Logging and Forestry Related activities:
<https://www.osha.gov/SLTC/etools/logging/manual/logger/personal equip.html>
- g) General Machine and Vehicles Logging and Forestry Related activities:
<https://www.osha.gov/SLTC/etools/logging/mechanical/machines.html>

C. Field Sanitation.

OSHA established minimum standards for field sanitation in covered agricultural settings. Refer to Fact Sheet # 51 Field Sanitation Standards under the Occupational Safety and Health Act.

- 6. Employment Requirements - Fact Sheets with relevant information may be found at <https://www.dol.gov/agencies/whd/fact-sheets/78-h2b-overview>. (English) or <https://www.dol.gov/agencies/whd/fact-sheets/69-h2b-requirements/espanol> (Spanish)
 - A. Contractors employing workers in forestry related work are required to comply with wage and payroll standards and recordkeeping requirements. Refer to Fact Sheet #63: Application of Federal Labor Laws to Reforestation found on the DOL Wage and Hour Division webpage.
 - B. Contractor Employee List. Contractors are required to maintain and provide upon request an active list of all employees performing work on the job site under this contract. The Employee List will identify employees by full name (aliases), supervisory duties if applicable, and appropriate labor Occupation Code for work performed under the Service Contract Act Wage Rates applicable to this contract. If Subcontractors are utilized, all tiers of subcontractor(s) are responsible for providing the same information for their employees to the Prime for submittal to the Contracting Officer.
- 7. Transportation
 - A. The contractor shall be registered to transport employees, unless employees provide their own transportation or carpool by their own arrangement in one of their own vehicles. Authorization for

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each vehicle that will be used to transport employees must appear on the contractor's certificate. If the contractor directs or requests employees to carpool, the registration requirement is applicable. Any driver, who transports workers for a fee or at the direction of the contractor, shall be registered as an FLC or an FLC employee.

- B. See Fact Sheet #50: Transportation under the MSPA, for more information about the vehicle safety standards, driver's licensing requirements, and vehicle insurance requirements. Note that separate transportation requirements may apply if there are H-2B workers.

8. Housing

- A. The authorization to furnish housing, other than commercial lodging certified by a health authority or other appropriate agency, must appear on the contractor's certificate. Contractors should contact their local Wage and Hour Division of the DOL for further information on the requirements of the Act.
- B. Camping Requirements. The Forest Service (FS) has various camping opportunities. Check with local FS unit for camping requirements, camping permits may be required. Verify local fire restriction policies. If camps will be used to house workers subject to MSPA, they are also subject to the temporary labor camp standards at 29 CFR 1910.142. The Forest Service reserves the right to terminate a camping permit at any time. These requirements are in addition to those contained in or provided for under the clause titled Use of Premises in this contract. Any violation of these conditions constitutes a breach of contract and may result in revocation of camping approval.
 - 1. Every structure used as shelter must provide protection from the elements. Where adequate heat is not provided, make other arrangements to protect workers from the cold. Cut firewood only after a District Firewood Permit is obtained.
 - 2. The campsite must not encroach beyond the boundaries designated by the Forest Service. The campsite location must minimize impacts on streams, lakes, and other bodies of water. Camping is not permitted within developed recreational sites or along primary recreational roads.
 - 3. The campsite must have a clean appearance at all times. Upon abandonment of any campsite, or termination, revocation, or cancellation of camping privileges, the contractor shall remove, within 10 calendar days, all structures and improvements except those owned by the United States, and shall restore the site, unless otherwise agreed upon in writing or in the camping permit. Structures or improvements the contractor fails to remove within the 10 calendar day period becomes the property of the United States, however, the contractor remains liable for the cost of the removal and restoration of the site.
 - 4. Unless otherwise designated by the CO, the use of the area is not exclusive and may be granted to other permittees, contractors, or recreating public. Disorderly conduct is not permitted.
 - 5. Damaging or removing any natural feature or other property of the Forest Service is prohibited.
 - 6. Servicing of equipment in the campsite is not permissible unless the campsite is within the project area.
 - 7. Provide sanitary facilities for storing food. Provide ice chests or coolers, with ice supply made from potable water, and replenish as necessary. Provide sufficient storage for perishable food items.

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8. Provide an adequate and convenient potable water supply in each camp for drinking and cooking purposes.
9. Provide adequate toilet facilities and toilet paper for the capacity of the camp. Service and maintain facilities in a sanitary condition.
10. Collect, store, and dispose of garbage in a manner to discourage rodent access, minimize attraction of flies, and prevent scattering by wind
11. Maintain basic first aid supplies available, which must be under the charge of a person trained to administer first aid.

The basic supplies must include:

- Gauze pads (at least 4x4 inches)
 - Two large gauze pads (at least 8x10 inches)
 - Box adhesive bandages (such as band-aids)
 - One package of gauze roller bandage (at least 2-inches in width)
 - Two triangular bandages
 - Scissors
 - At least one blanket
 - Tweezers
 - Adhesive tape
 - Medical gloves, (latex or non-latex equivalent), and
 - Resuscitation device such as resuscitation bag, airway, or pocket mask.
12. Wash laundry in such a way that washing and rinsing will not pollute lakes, streams, or other flowing water.
 13. Dispose waste water away from living and eating areas and in such a way that minimizes pollution to lakes, streams, and other flowing water.
 14. The contractor shall take all reasonable precautions to prevent and suppress forest fires. Do not dispose of material by burning in open fires during the closed season established by law or regulation without the written permission from the Forest Service.
 15. If authorized to have an open fire, the Contractor shall comply with the following fire regulations:
 - A shovel, axe or Pulaski, a 10-quart pail, which is full of water for immediate use, and a fire extinguisher with an Underwriters Laboratory (UL) rating of at least 1:A 10:BC is required.
 - All fire rings or outside fireplaces must be approved by the Forest Service representative. The area must be cleared down to mineral soil for a distance of one foot outside of the ring or fireplace, and it must not have any overhanging material. Fire rings must be dismantled and material disposed prior to leaving the site.
 - All generators and other internal combustion engines must be equipped with Forest Service approved spark arrestors and/or factory designed muffler and exhaust system in good working order. They will be located in a cleared area with the same requirements as in described in the previous paragraph.
 - All fuel must be stored in UL approved flammable storage containers and be located at least 50 feet from any open flame or other source of ignition.

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16. Contractors are required to provide certification of employment status as part of their representations, certifications, and acknowledgements at the time of submission of proposals/ offers/quotes.

33. PROTECTION MEASURES NEEDED FOR PLANTS, ANIMALS, CULTURAL RESOURCES, AND CAVE RESOURCES

Locations of known areas needing special measures for the protection of plants, animals, cultural resources, and/or cave resources are shown on Contract Area Map and/or identified on the ground. Special protection measures needed to protect such known areas are identified in Appendix B, if applicable.

In addition to any special protection measures noted, Contractor has a general duty to protect all known and identified resources referenced in this Subsection from damage or removal during Contractor's operations. Discovery of additional areas, resources, or members of species needing special protection shall be promptly reported to the other party, and operations shall be delayed or interrupted at that location, if Contracting Officer determines there is risk of damage to such areas, resources, or species from continued operations.

Wheeled or track-laying equipment shall not be operated in areas identified as needing special measures for the protection of cultural resources, except on roads, landings, tractor roads, or approved skid trails. Unless agreed otherwise, trees will not be felled into such areas. Contractor may be required to backblade skid trails and other ground disturbed by Contractor's operations within such areas in lieu of required cross ditching.

Contractor shall immediately notify Forest Service if disturbance occurs to any area identified as needing special protection measures and shall immediately halt operations in the vicinity of the disturbance until Forest Service authorizes Contractor to proceed. Contractor shall bear costs of resource evaluation and restoration to identified sites. Such payment shall not relieve Contractor from civil or criminal remedies otherwise provided by law.

Forest Service has exercised due diligence and followed established protocols in identifying known areas needing special protection measures. Nevertheless, nothing in this provision shall be interpreted as creating any warranty that all locations and special measures for the protection of plants, animals, cultural resources, and cave resources have been described herein, elsewhere in the contract, or designated on the ground.

Label on Contract Area Map	Restrictions
ATP1	Prohibit logging activities within units 40,41,74A,74B,75,76,77,79,81,82,83,134, and 143 from May 15 through June 15 to avoid impacts to ungulate calving/fawning.
ATP2	No ground disturbing activities shall be allowed inside known occupied goshawk post fledgling areas from April 15 to August 15. No treatments will occur with a 40-acre yearlong buffer around recently occupied goshawk nest trees.
ATP3	Plant species of concern. Consult with Zone Botanist prior to planning ground disturbing activities within polygons.
ATP4	Archaeological/Heritage avoidance area. Consult with Zone Archaeologist prior to planning ground disturbing activities.

34. EROSION PREVENTION AND CONTROL

Contractor's Operations shall be conducted reasonably to minimize soil erosion. Equipment shall not be operated when ground conditions are such that excessive damage will result. The kinds and intensity of erosion control work done by Contractor shall be adjusted to ground and weather conditions and the need for controlling runoff. Erosion control work shall be kept current immediately preceding expected seasonal periods of precipitation or runoff.

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If Contractor fails to do seasonal erosion control work prior to any seasonal period of precipitation or runoff, Forest Service may temporarily assume responsibility for the work and any unencumbered deposits here under may be used by Forest Service to do the work. If needed for such work, Contractor shall make additional deposits on request by Forest Service. Any money deposited or used for this purpose shall be treated as cooperative deposits.

35. PROTECTION OF LAND SURVEY MONUMENTS

Forest Service shall appropriately designate on the ground all known survey monuments including but not limited to horizontal control stations (Triangulation Stations), vertical control stations (Benchmarks), property corner monuments, and all Public Land Survey System monuments. This shall include reference monuments, corner accessories such as bearing trees, line trees and line posts. Identifying signs shall be posted by Forest Service on two sides of each known bearing tree, and each line post shall be posted with a metal sign or decal. Line trees may be cut if designated by the Government.

In authorized clearings such as clearcutting units and road construction clearings, and in other instances where damage to survey monuments, corners, corner accessories and survey of property line markers is unavoidable, Forest Service shall arrange protective or perpetuative action that does not cause unnecessary delay to Contractor.

Contractor shall protect all known survey monuments, witness corners, reference monuments, bearing trees and line markers against avoidable destruction, obliteration or damage during Contractor's operations. Additional monuments or objects discovered on the area shall be promptly reported to the other party and shall also be protected. If any known monuments, corners, corner accessories, and survey or property line markers are destroyed, obliterated or damaged during Contractor's operations, Contractor shall employ a registered professional land surveyor to reestablish or restore at the same location the monuments, corners, corner accessories or line markers. Such surveyors shall use procedures and monumentation that accords with the Bureau of Land Management Manual of Instructions for the Survey of the Public Lands of the United States for General Land Office surveys and any applicable State statutes concerned with land surveys. The contractor's agent shall record such surveys in accordance with state survey statutes.

36. PROTECTION OF IMPROVEMENTS

So far as practicable, the Contractor shall protect all physical improvements including, but not limited to, roads, trails, ditches, fences, waterlines and other improvements, existing in the contract area, determined to have continuing need or use, and designated on the Contract Area Map.

The Contractor shall keep all roads and trails needed for fire protection or other purposes and designated on the Contract Area Map reasonably free of equipment and products, slash, and debris resulting from the Contractor's operations. The Contractor shall make timely restoration of any such improvements damaged by the Contractor's operations and, when directed (because of such operations) shall move such improvements if and as specified by the Forest Service.

All protected improvements will be protected from damage by the Contractor. If any protected improvements are disturbed, the Contractor shall immediately contact the COR and will be liable for the cost of repairs.

PROTECTED IMPROVEMENTS		
IMPROVEMENT	DESCRIPTION	LOCATION
Roads	All Roads (including associated features and bridges)	As identified on Contract Area Map
Land Survey Monuments	Stakes, pins, signage, posts, bearing trees	As identified on Contract Area Map

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Trails	Tread, improvements, signage, gates, bridges	As identified on Contract Area Map
Mine	Mining improvements, Claims, Markers	As identified on Contract Area Map
Range	Fences, water troughs, gates, waterlines	As identified on Contract Area Map
Developed Rec	Recreation infrastructure	As identified on Contract Area Map

Forest Service shall notify all utility companies, or other parties affected, and make arrangements for all necessary adjustments of the public utility fixtures, pipelines, and other appurtenances likely to be affected by Contractor's Operations.

When Contractor's Operations are adjacent to properties of railway, telephone, or power companies, or other property, work shall not begin until Contractor has identified actions necessary to prevent damage.

Contractor shall cooperate with the owners of any underground or overhead utility lines in their removal and/or rearrangement operations in order that these operations may progress in a reasonable manner, utility duplication or rearrangement work may be reduced to a minimum, and services shall not be unnecessarily interrupted.

In the event of interruption to utility services because of accidental breakage or as a result of lines being exposed or unsupported, Contractor shall promptly notify the proper authority and shall cooperate with that authority in the restoration of service until the service is restored.

When materials are to be hauled across the tracks of any railway, Forest Service will make arrangements with the railroad for the use of any existing crossing or for any new crossing required. Contractor shall make arrangements for use of alternate crossings. All construction work to be performed by Contractor on the rail- road right-of-way shall not damage railroad company's property.

37. PROTECTION OF PROPERTY

In construction and reconstruction of Roads, Contractor shall not unnecessarily remove, deface, injure, or destroy trees, shrubs, or other natural features, unless specifically authorized. To the extent practicable, Contractor shall confine operations to within the clearing limit or other areas designated in the contract and prevent the depositing of rocks, excavated materials, stumps, or other debris outside these limits.

Material that falls outside these limits shall be retrieved, disposed of, or incorporated in the work to the extent practicable and necessary to protect adjacent resource values, unless otherwise agreed.

38. PROTECTION OF RESIDUAL TREES

Contractor Operations shall not unnecessarily damage young growth or other trees to be reserved (see Appendix B.)

39. SANITATION AND SERVICING

Contractor shall take all reasonable precautions to prevent pollution of air, soil, and water by Contractor's operations. If facilities for employees are established on Contract Area, they shall be operated in a sanitary manner. Contractor shall not service tractors, trucks, or other equipment on National Forest lands where servicing is likely to result in pollution to soil or water. Contractor shall remove from National Forest lands all refuse resulting from use, servicing, repair, or abandonment of equipment. In the event that Contractor's operations or servicing of equipment result in pollution to soil or water, Contractor shall conduct cleanup to restore the polluted site to the satisfaction of the Forest Service.

40. PREVENTION OF OIL SPILLS AND HAZARDOUS SUBSTANCES

If Contractor maintains storage facilities for oil or oil products on Contract Area, Contractor shall take appropriate preventive measures to ensure that any harmful discharge of such oil or oil products does not enter into or upon any navigable waters, adjoining shorelines, or other waters of the United States, as prescribed in 40 CFR 110. As soon as Contractor has knowledge that measures, as described in Sanitation and Servicing fail to prevent a discharge

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into or upon navigable waters or adjoining shorelines of the United States, Contractor shall notify the Contract Officer or Contract Officer Representative, the National Response Center and any other appropriate State agencies. In accordance with 40 CFR 110.6, all harmful discharges that occur as a direct or indirect result of Contractor's operations, regardless of whether such discharges are caused by Contractor's employees, agents, Subcontractors, or their employees or agents, directly or indirectly, as a result of Contractor's Operations must be reported.

Harmful discharges of oil are those that violate applicable State water quality standards, cause a film or sheen on the water's surface, or leave sludge or emulsion beneath the surface of the water or adjoining shorelines regardless of the amount of material discharged (40 CFR 110.3). As such reporting is not triggered by the amount of the discharge but by the presence of the criteria prescribed in 40 CFR 110.3. Harmful discharges meeting the criteria in 40 CFR 110 must be reported by Contractor. Contractor shall take whatever initial action may be safely accomplished to control all reportable discharges. Appropriate actions include but are not limited to containment, sorbents or dispersants as needed or as prescribed by the Spill Prevention Control and Countermeasures Plan pursuant to 40 CFR 112. Contractor shall prepare a Spill Prevention Control and Countermeasures (SPCC) Plan pursuant to EPA requirements as stated in 40 CFR 112 when the following conditions are met:

- (a) Contractor maintains above ground storage facilities, including mobile storage, for oil or oil products on the Contract Area and the total storage capacity for these products exceeds 1,320 gallons in either a single container of greater than 1,320 gallons, or in multiple containers of 55 gallons or greater, and
- (b) there is a reasonable expectation that a harmful discharge could reach navigable waters of the United States, adjoining shorelines or other waters as prescribed in 40 CFR 112.

Reasonable expectation for a discharge reaching navigable waters is based on the location of the storage facility to streams, ditches, gullies, or permanent water bodies that could be impacted as well as drainage patterns, soil conditions, precipitation runoff and the volume of material potentially spilled. The SPCC Plan shall outline measures which will prevent discharges from reaching navigable waters, adjoining shorelines, or other waters of the United States. According to §112.1(d)(1)(i), the determination of reasonable expectation for a harmful discharge must be based solely upon consideration of the geographical and locational aspects of the facility. If a Contractor makes a determination that, due to the location, the facility cannot reasonably be expected to discharge oil as described in §112.1(b), Contractor should be prepared to provide the rationale and any supporting documentation, if requested by the Contracting Officer, that explains why the facility does not have an SPCC Plan.

Contractor shall notify the National Response Center and Contracting Officer of all releases of reportable quantities of hazardous substances on or in the vicinity of Contract Area that are caused by Contractor's employees, agents, Subcontractors or their employees or agents, directly or indirectly, as a result of Contractor's Operations, in accordance with 40 CFR 302.

The Contractor will take whatever initial action may be safely accomplished to contain all spills.

41. EQUIPMENT CLEANING/NOXIOUS WEED CONTROL

- (1) In order to prevent the potential spread of noxious weeds onto National Forest lands, the Contractor shall be required to furnish the Forest Service with proof of weed-free equipment. Cleaning shall remove all soil, plant parts, seeds, vegetative matter, or other debris that could contain or hold seeds. Only logging and construction equipment so cleaned and inspected by the Forest Service will be allowed to operate within the Contract Area. All subsequent move-ins of equipment to the Contract Area shall be treated in the same manner as the initial move in. "Off-road equipment" includes all logging and construction machinery, except for log trucks, chip vans, service vehicles, water trucks, pickup trucks, cars, and similar vehicles.
- (2) Noxious weeds are defined as any exotic plant species established or that may be introduced in the State, which may render the land unfit for agriculture, forestry, livestock, wildlife, or other beneficial uses and

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which is designated by applicable state agency or the local counties vendor is operating in, or by other appropriate agencies having jurisdiction.

- (3) All equipment and vehicles to be used at the job site shall be cleaned and certified free of noxious weeds and their seeds prior to entrance onto the National Forest. The restriction shall include equipment and vehicles intended for off-road use, as well as on road use, whether they are owned, leased, or borrowed by the Contractor or subcontractor.
- (4) Unless otherwise agreed, Contractor shall give the Forest Service at least 24 hours' notice when equipment is ready for inspection. Notification will include an agreed upon location where the equipment will be available for inspection by the forest service.
- (5) Equipment, materials and vehicles shall be visually inspected by a designated Forest Service Officer, and certified in writing to be reasonably clean and weed free. Inspections will take place at a location designated by the Forest Officer in advance of equipment and material arrival. Equipment and vehicles are expected to proceed directly to the job site following the inspection.
- (6) New infestations of noxious weeds, of concern to Forest Service and identified by either Contractor or Forest Service, on the Contract Area or on the haul route, shall be promptly reported to the other party. Contractor and Forest Service shall agree on treatment methods to reduce or stop the spread of noxious weeds when new infestations are found. A current list of noxious weeds of concern to Forest Service is available at each Forest Service office.

42. MEADOW PROTECTION

Reasonable care shall be taken to avoid damage to the cover, soil, and water in meadows shown on Contract Area Map. Vehicular or skidding equipment shall not be used on meadows, except where roads, landings, and tractor roads are approved. Unless otherwise agreed, trees felled into meadows shall be removed by endlining. Resulting logging slash shall be removed where necessary to protect cover, soil, and water.

43. WETLANDS PROTECTION

Wetlands requiring protection under Executive Order 11990 are shown on Contract Area Map. Vehicular or skidding equipment shall not be used in such wetlands, except where roads, landings, and tractor roads are approved by the Contracting Officer. Special protection measures needed to protect such known areas are identified in Appendix B, if applicable.

44. STREAMCOURSE PROTECTION

"Streamcourses" that are subject to provisions of this Section are shown on Contract Area Map. Unless otherwise agreed, the following measures shall be observed to protect Streamcourses:

(a) Contractor's Operations shall be conducted to prevent debris from entering Streamcourses, except as may be authorized under paragraph (d). In event Contractor causes debris to enter Streamcourses in amounts that may adversely affect the natural flow of the stream, water quality, or fishery resource, Contractor shall remove such debris as soon as practicable, but not to exceed 48 hours, and in an agreed manner that will cause the least disturbance to Streamcourses.

(b) Culverts or bridges shall be required on Temporary Roads at all points where it is necessary to cross Streamcourses. Such facilities shall be of sufficient size and design and installed in a manner to provide unobstructed flow of water and to minimize damage to Streamcourses. Trees or products shall not be otherwise hauled or yarded across Streamcourses unless fully suspended.

(c) Wheeled or track-laying equipment shall not be operated in Streamcourses, except at crossings designated by Forest Service or as essential to construction or removal of culverts and bridges.

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(d) Flow in Streamcourses may be temporarily diverted only if such diversion is necessary for Contractor's planned construction and Forest Service gives written authorization. Such flow shall be restored to the natural course as soon as practicable and, in any event, prior to a major storm runoff period or runoff season.

Label on Contract Area Map	Restrictions
N/A	See Appendix D for culvert dewatering specifications

45. REQUIREMENTS OF RIGHTS-OF-WAY

Contractor's road construction and use on rights-of-way shall be confined to said rights-of-way and limited by the related easements and stipulations, if any, unless Contractor makes other arrangements that will not infringe upon or adversely affect the grantee's rights. Said easements or right-of-way documents are available in the offices of the Forest Supervisor and District Ranger.

46. ROAD MAINTENANCE

Contractors shall maintain roads, commensurate with Contractor's use, in accordance with Road Maintenance Requirements and the Road Maintenance Specifications in Appendix C. Performance of road maintenance work by Contractor may be required prior to, during, and/or after each period of use. The timing of work accomplishment shall be based on the Contractor's Operating Schedule.

When two or more commercial users are simultaneously using the same road where Forest Service is not requiring maintenance deposits, the commercial users will develop maintenance responsibilities and arrangements for accomplishing the work. The Forest Service must agree to this plan. If the commercial users cannot agree on maintenance responsibilities, Forest Service shall resolve the differences. If Contractor elects to use different roads than those listed, Forest Service shall determine Contractor's commensurate share of road maintenance and revise road maintenance deposits. If Forest Service cannot perform its full commensurate share of road maintenance, Forest Service shall make a cash payment to the Contractor for performance of such work.

Unless agreed in writing, prehaul maintenance shall be completed on any portion of road prior to hauling on that portion. Maintenance, as used in this contract, does not include road reconstruction or repairs of an extraordinary nature.

47. USE BY OTHERS

Forest Service shall have the right to use any road constructed by Contractor under this contract for all purposes in connection with the protection and administration of the National Forest. Other parties, in connection with the logging of tributary National Forest timber, may use roads constructed by Contractor hereunder when such use will not materially interfere with Contractor's Operations. Such third-party use shall be contingent upon the third party paying a fair share of maintenance cost commensurate with such commercial use. Unless otherwise provided, the Forest Service shall authorize other uses of roads constructed by Contractor hereunder only if:

(a) Forest Service makes appropriate arrangements to relieve Contractor of related maintenance costs commensurate with such other uses and

(b) Such other uses will not materially interfere with Contractor's Operations.

Where Contractor reconstructs a road having established use, the use during reconstruction and thereafter by Contractor shall be such as to reasonably accommodate such established use. Contractor shall have the right to use such reconstructed roads without material additional interference from other users.

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48. SAFETY

Contractor's Operations shall facilitate the Forest Service's safe and practical inspection of Contractor's Operations and conduct of other official duties on Contract Area. Contractor has all responsibility for compliance with safety requirements for Contractor's employees. In the event that a conflict develops between the requirements of this contract or agreed upon methods of proceeding hereunder and State or Federal safety requirements, the contract shall be modified, and the Contractor may request an equitable adjustment.

Unless otherwise agreed in writing, when Contractor's Operations are in progress adjacent to or on Forest Service controlled roads and trails open to public travel, Contractor shall furnish, install, and maintain all temporary traffic controls that provide the user with adequate warning of hazardous or potentially hazardous conditions associated with Contractor's Operations. Contractor and Forest Service shall agree to a specific Traffic Control Plan for each individual project prior to commencing operations. Devices shall be appropriate to current conditions and shall be covered or removed when not needed. Except as otherwise agreed, flagmen and devices shall be as specified in the "Manual on Uniform Traffic Control Devices for Streets and Highways" (MUTCD) and as shown on Plans, Contract Area Map, Traffic Control Plan, or in specifications attached hereto.

Logging operations, thinning, slash treatments, and roadwork are inherently hazardous. Conditions, which are inherently hazardous, that could lead to serious injury or loss of life include, but are not limited to:

1. Traffic hazards	5. Heavy equipment operations
a. Narrow gravel or native surface forest roads, some single lane with turnouts (limited visibility)	a. Backing into objects
b. Long, steep grades (less than 20%)	b. Steep side slopes or soft ground for rollovers
c. Logging, Administrative, and Recreational Traffic	c. Refueling hazards
d. Unskilled visitor traffic	d. Exceeding equipment limitations
e. Dusty conditions hindering visibility behind vehicles	e. Unsafe equipment / lack of safety equipment
f. Horse traffic at crossings	f. Operator fatigue
	g. May be overwidth/overweight equipment to watch for on roads
2. Work environment	6. Excavation
a. Inclement weather for potential hypo/hyperthermia	a. Slope or trench wall instability
b. High winds that can bring down trees and blow dust	b. Air quality/ventilation
c. Wet, snowy or ice conditions making ground unstable	
d. High db noise	7. Truck Driving & Trailer Towing
e. Insects, plants, animals	a. Increased stopping distance
f. Hazardous footing/terrain	b. Loads insecurely lashed
	c. Low clearances (power lines, etc.)
3. Communications	
a. Cell phone or radio availability for emergencies	8. Personnel
4. Chainsaw operations	a. Carry adequate liquids to prevent dehydration
a. Improper safety equipment	b. Dress for working conditions including wearing appropriate safety equip.

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b. Overhead/falling debris	c. Keep in communications for safety
c. Fatigue/improper cutting techniques	

Contractor shall provide a job-specific safety plan, addressing mitigation of the hazards listed above and any other hazards known to the Contractor. The plan shall be presented at the post-award conference unless required with technical proposals.

49. ACCIDENT AND INJURY NOTIFICATION

Contractor shall notify Forest Service of any lost time personal injury accident or any accident or vandalism resulting in personal property damage over \$400 in value that occurs as a result of or is associated with Contractor's Operations.

Contractor shall notify Forest Service within 8 hours of any personal injury accident. For vandalism and personal property accidents, Contractor shall notify Forest Service at the same time notification is given to the state and local law enforcement authorities.

Contractor shall take all reasonable measures after an accident or vandalism event to preserve the scene of the incident and provide information to facilitate a Forest Service investigation.

The method of notification shall be agreed to in writing at the prework conference.

50. CONTRACTOR PERFORMANCE SYSTEM REGISTRATION

General. This contract is subject to Federal Acquisition Regulations (FAR), Agriculture Acquisition Regulations (AGAR), and the USDA Acquisition Manual (AGAM) that require past performance evaluations to be completed and entered into the Contractor Performance Assessment Reporting System (CPARS).

Assessment. Upon completion of the work associated with the contract (final), or at the end of the year mark(s) if the contract exceeds one year (interim), an evaluation will be initiated by the Contracting Officer in the CPARS system and the Contractor Representative will receive an auto-email from CPARS with instructions for completion of the evaluation.

All Contractors shall ensure that they are registered with the Contractor Performance Assessment Reporting System (CPARS) within 30 days of contract award. System information can be found at: <https://www.cpars.gov/>

51. INVOICE PROCESSING PLATFORM (IPP)

The "Submit Invoice-to" address for USDA orders is the Department of Treasury's Invoice Processing Platform (IPP). The Contractor must follow the instructions on how to register and submit invoices via IPP as prescribed in the previous communications from USDA and Treasury. All invoices shall be submitted via the electronic Invoice Processing Platform. This platform is managed by the U.S. Department of Treasury and additional information is available at this website: <https://www.ipp.gov/>. Payment vouchers submitted in IPP must be accompanied by an invoice that includes the information required by [5 CFR 1315.9](#)

52. AGAR 452.236-70 EMERGENCY RESPONSE, FIRE SUPPRESSION, AND LIABILITY.

(a) *Contractor's Responsibility for Responding to Emergencies.* When directed by the contracting officer, the Contractor shall allow the Government to temporarily use employees and equipment from the work site for emergency work (anticipated to be restricted to firefighting). This is considered to be within the general scope of the contract. An equitable adjustment for the temporary use of employees and equipment will be made under the Contract Terms and Conditions—Commercial Products and Commercial Services Changes clause, FAR 52.212-4 (d).

(b) *Contractor's Responsibility for Fire Fighting.* The Contractor, under the provisions of FAR 52.236-9, Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements, shall immediately

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extinguish all fires on the work site other than those fires in use as a part of the work. The Contractor may be held liable for all damages and for all costs incurred by the Government for labor, subsistence, equipment, supplies, and transportation deemed necessary to control or suppress a fire set or caused by the Contractor or the Contractor's agents, subcontractors, or employees subject to the fire classifications listed in subsection (c).

(c) *Fire Suppression Costs.* The Contractor's obligations for cost of fire suppression vary according to three classifications of fires as follows:

(1) *Operations Fire.* An "operations fire" is a fire caused by the Contractor's operations other than a negligent fire. The Contractor agrees to reimburse the Forest Service for such cost for each operations fire, subject to a maximum dollar amount of [Contracting Officer insert amount]. The cost of the Contractor's actions, supplies, and equipment expended or used on suppressing any such fire, or otherwise provided at the request of Forest Service, shall be credited toward such maximum. If the Contractor's actual cost exceeds the contractor's maximum obligation stated above, the Forest Service shall reimburse the contractor for the excess.

(2) *Negligent Fire.* A "negligent fire" is a fire caused by the negligence or fault of the Contractor's operations including, but not limited to, one caused by smoking by persons engaged in the Contractor's operations during the course of their employment, or during rest or lunch periods; or if the Contractor's failure to comply with requirements under this contract results in a fire starting or permits a fire to spread. Damages and the cost of suppressing negligent fires shall be borne by the Contractor.

(3) *Other Fires on Contract Area.* The Forest Service shall pay the Contractor, at firefighting rates common in the area or at prior agreed rates, for equipment or personnel furnished by the Contractor at the request of the Forest Service, on any fire on the contract area other than an operations fire or a negligent fire.

(d) *Contractor's Responsibility for Notification in Case of Fire.* The Contractor shall immediately notify the Government of any fires sighted on or in the vicinity of the work site.

(e) *Performance by the Contractor.* Where the Contractor's employees, agents, contractors, subcontractors, or their employees or agents perform the Contractor's operations in connection with fire responsibilities, the Contractor's obligations shall be the same as if performance was by the Contractor.

(f) *State Law.* The Contractor shall not be relieved by the terms of this contract of any liability to the United States for fire suppression costs recovered in an action based on State law, except for such costs resulting from operations fires. Amounts due to the Contractor for firefighting expenditures on operations fires shall not be withheld pending settlement of any such claim or action based on State law.

50.1 FIRE PRECAUTIONS AND CONTROL

1. Fire Period and Closed Season

Specific fire prevention measures are listed below and shall be effective for the period **May 10 to October 20** of each year. The Forest Service may change the dates of said period by advance written notice if justified by unusual weather or other conditions. Required tools and equipment shall be kept currently in serviceable condition and immediately available for initial attack on fires.

2. Fire Plan

Before starting any operations on the project, the Contractor, Permittee, Licensee, or Purchaser, hereinafter referred to as the "Contractor," shall prepare a fire plan in cooperation with the Contracting Officer providing for the prevention and control of fires in the project area. The Contractor shall certify compliance with fire protection and suppression requirements before beginning operations during the fire period and closed season, and shall update such certification when operations change.

3. Substitute Measures

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The Contracting Officer may by written notice authorize substitute measures or equipment or may waive specific requirements during periods of low fire danger.

4. Emergency Measures

The Forest Service may require emergency measures, including the necessary shutting down of equipment or portions of operations in the project area during periods of fire emergency created by hazardous climatic conditions.

5. Fire Control

The Contractor shall, independently and in cooperation with the Forest Service, take all reasonable action to prevent and suppress fires in the project area. Independent initial action shall be prompt and shall include the use of all personnel and equipment available in the project area. For the purpose of fighting forest fires on or in the vicinity of the project which are not caused by the Contractor's operations, the Contractor shall place employees and equipment temporarily at the disposal of the Forest Service. Any individual hired by the Forest Service will be employed in accordance with the Interagency Pay Plan for Emergency Firefighters. The Forest Service will compensate the Contractor for equipment rented at fire fighting equipment rates common in the area, or at prior agreed to rates.

6. Compliance with State Forest Laws

Listing of specific fire precautionary measures herein is not intended to relieve the Contractor in any way from compliance with the State Fire Laws covering fire prevention and suppression equipment, applicable to operations under this contract, permit or license.

7. Fire Precautions

Specific fire precautionary measures are set forth below and apply to all work requirements unless otherwise agreed and waived by the Forest Service. Upon request of Forest Service, Contractor shall permit and provide an individual to assist in periodic testing and inspection of required fire equipment. Contractor shall promptly remedy deficiencies found through such inspecting and testing.

The following requirements specified by the state of IDAHO shall apply during the period stated in A12 and during other such periods as specified by Forest Service.

STATE OF IDAHO REQUIREMENTS

1. INCORPORATION BY REFERENCE.

Spark Arrester Guide – General Purpose and Locomotive (GP/Loco), Volume 1, September 2012, 1251 1809-SDTDC as revised and updated.

Spark Arrester Guide – Multiposition Small Engine (MSE), Volume 2, August 2012, 1251 1808-SDTDC as revised and updated.

Spark Arrester Guide – Off- Highway Vehicles (OHV), Volume 3, April 2012, 1251 1805-SDTDC as revised and updated.

2. DEFINITIONS

Block: A piece of logging equipment where steel rope or cable is actively turning the block's pulley and used as part of a cable logging/yarding system for the specific purposes of establishing tail hold anchor points, intermediate support of main lines, or carriage haul-back capability for the purposes of yarding or hauling of logs to a log landing for transportation to a mill or processing facility.

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Cable or Cable Assisted Logging: A harvest system for felling or yarding of forest product materials consisting of the use of a cable assisted harvester or the use of a yarder, spar tree, or intermediate support with motorized or non-motorized carriage to transport logs to the landing for further processing purposes.

Metal Tracked Harvester: Any machine with metal tracks used to fall, bunch or process trees into forest products at the stump.

Serviceable: In good working order and fully functioning to perform the primary job intended for extended periods of time.

3. SPARK ARRESTERS.

Requirements. Steam or internal combustion engines must be equipped with properly installed, maintained, and effectively working spark arresters that comply with the standards set forth in the San Dimas Technology and Development Center’s “Spark Arrester Guide(s).”

Exemptions. The following are exempt from the requirements:

- a. Turbo-charged internal combustion engines in which one hundred percent (100%) of the exhaust gases pass through the turbo-charger.
- b. Engines of passenger-carrying vehicles and light trucks, equipped with baffle-type muffler and tailpipe through which all exhaust gasses pass, that are kept in good repair.
- c. Engines of heavy-duty trucks equipped with a vertical exhaust stack and muffler extending above the cab of the vehicle.
- d. Engines of water pumping equipment used in firefighting.
- e. Engines of helicopters and other aircraft.

4. FIRE TOOLS AND FIRE EXTINGUISHERS.

Basic Fire Cache. Contractor will have available for firefighting purposes the number of tools and tool boxes set forth in Table 1. Contractor’s Operations having more than ten (10) people must use multiples of any of the columns in the table to arrive at a tool distribution equal to or in excess of the number of people in the Contractor’s Operations

TABLE 1

People in Operation	2 - 5	6 - 8	9 - 10
Tool Box	1	1	1
Shovels	2	4	5
Pulaskis	2	4	4
5 gallon pump cans or bladder bags	1	1	2

- a. The tool boxes must be clearly marked “FOR FIRE USE ONLY”; and the tools required must be in a location immediately accessible for firefighting purposes, maintained in a serviceable condition and be fully functional at the time of deployment.

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b. Warming Fires or Campfires. Except when in designated developed campgrounds or when traveling as a pedestrian, all persons or parties igniting warming fires or campfires will be equipped with the following:

i. One (1) serviceable shovel at least twenty-four (24) inches in overall length with six (6) inch or wider blade.

ii. One (1) water container, capacity one (1) gallon or more.

c. Power Equipment. Each unit of mobile or stationary power equipment other than portable power saws, trail bikes, motorcycles, all-terrain vehicles and similar type vehicles operating must be equipped with a minimum of one (1) chemical fire extinguisher rated by the Underwriters Laboratory as not less than 4-BC and a minimum capacity of 2.5 lbs.

d. Portable Power Saw. Any person using a portable power saw must have the following immediately available for the prevention and suppression of fire:

i. A fully charged operable fire extinguisher of at least eight (8) ounce minimum capacity.

ii. A serviceable round-pointed size zero (0) or larger shovel.

5. WATER SUPPLY AND EQUIPMENT.

Contractor's Operations using a cable logging system or a metal tracked harvester during the period of July 1st through September 30th annually must provide the following water supply and fire suppression equipment in the Sale Area at an agreed to location.

a. Water Supply.

i. The water supply must consist of a self-propelled motor vehicle or trailer equipped with a water tank containing not less than two hundred (200) gallons of water.

ii. Trailers used for this purpose will be equipped with a functional hitch attachment and have a serviceable tow vehicle immediately available to provide for timely fire suppression response.

b. Water Delivery.

i. Water pump. The size and capacity of the water pump must be sufficient to provide a discharge of not less than twenty (20) gallons per minute when pumping through fifty (50) feet of hose of not less than three quarter ($\frac{3}{4}$) inch inside diameter with an adjustable nozzle at pump level.

ii. Hose and nozzle. At least five hundred (500) feet of serviceable hose of not less than three quarter ($\frac{3}{4}$) inch inside diameter and a nozzle.

c. Readiness.

i. All hose, motor vehicles, trailers, tanks, nozzles and pumps will be kept ready for immediate use during active operations, including fire watch service as set forth in this provision.

ii. The water supply, pump, a minimum of two hundred (200) feet of hose packaged in a suitable manner for immediate deployment, and the nozzle will be maintained as a connected, operating unit ready for immediate use.

6. FIRE WATCH SERVICE.

Contractor's Operations that are conducted within a Stage 2 proclamation area must provide Fire Watch Service on the Sale Area.

a. Duties and Requirements. Fire Watch Service consists of at least one (1) person who:

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- i. Is constantly on duty for three (3) hours after all power-operated equipment has been shut down for the day.
- ii. Visually observes the operating area where Contractor's Operations occurred during the day.
- iii. Has adequate equipment for transportation and communications to summon fire-fighting assistance in a timely manner; and
- iv. Immediately responds to fires as required in B7.3 Fire Control, and to initiate such fire suppression actions to suppress the fire within the scope of their knowledge, skills and abilities.

7. CABLE OR CABLE ASSISTED LOGGING.

The following practices and equipment are required when conducting cable logging operations.

- a. Clear the ground of all flammable debris for not less than ten (10) feet slope distance from the point directly below any block.
- b. Prevent moving lines from rubbing on rock or woody material in such a way to cause sparks or sufficient heat that may cause fuel ignition.
- c. Provide a water supply that complies with the capacity, pump, hose, nozzle and readiness requirements set forth in item 5. Water Supply and Equipment.
- d. Provide at each block:
 - i. One (1) pump equipped can or bladder containing not less than five (5) gallons of water; and
 - ii. One (1) round pointed size zero (0) or larger shovel in a serviceable condition

8. BLASTING.

Fuse or prima cord shall not be used unless authorized in writing by Forest Service, with special precautions stated.

9. SMOKING.

Smoking shall not be permitted within logging operations except on surfaced or dirt roads, at landings, within closed vehicles, in camps or at other posted places. Smoking shall not be permitted while working or traveling on foot, within or through Sale Area.

10. PRECAUTIONS FOR WOOD STOVES

Stovepipes on all temporary buildings, trailers, and tents using wood-burning stoves shall be equipped with roof jacks and serviceable spark arresters of mesh with openings no larger than 5/8 inch. All stovepipes, inside and out, shall not be closer than two (2) feet from any wood or other flammable material or one (1) foot if the combustible material is protected by a metal or asbestos shield.

11. DEBRIS AROUND BUILDINGS

The grounds around buildings, tents and other structures shall be kept free of flammable material for a distance of at least 15 feet from the wall of such structures.

12. STORAGE OF PETROLEUM AND OTHER HIGHLY INFLAMMABLE PRODUCTS

Gasoline, oil, grease, or other highly flammable material shall be stored either in a separate building or at a site where all combustible debris and vegetation is cleared away within a radius of 25 feet. Fire extinguishers and/or sand barrels may be required at such locations specified by Forest Service when unusually hazardous conditions exist.

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13. EMERGENCY MEASURES

Additional measures and/or other special requirements necessary during periods of critical fire-weather conditions shall be included in the fire prevention and presuppression plan.

14. WELDING.

Welding and use of cutting torches or cutoff saws will be permitted only in areas that have been cleared or are free of all material capable of carrying fire. Flammable debris and vegetation must be removed from within a minimum 10-foot radius of all welding and cutting operations. A shovel and a 5-gallon standard backpack water container filled and with handpump attached shall be immediately available for use in the event of a fire start.

53. PROPORTIONAL ECONOMIC PRICE ADJUSTMENT OF CONTRACT PRICE(S) BASED ON A PRICE INDEX.

(a) To the extent that contract cost increases are provided for by this economic price adjustment clause, the Contractor warrants that the prices in this contract for any option periods do not include any amount to protect against such contingent cost increases.

(b) The cost index, for the purpose of price adjustment under this clause, shall be:

a. Highway Diesel

EIA On-Highway Diesel Fuel Price – PADD 5xCA West Coast Less California

https://www.eia.gov/dnav/pet/pet_pri_gnd_dcus_r5xca_w.htm

Published weekly by the U.S. Energy Information Administration (EIA), dollars per gallon.

(1) The *Base Index*, for the purposes of price adjustment under this clause, shall be the most recent Index published prior to the closing date for receipt of offers, or the due date for receipt of best and final offers if discussions are held. This Base Index shall remain constant throughout the life of the contract, including all options.

(2) The *Adjusting Index* shall be the most recent Index published prior to the date of contract adjustment, as specified in paragraph (f).

(c) For purposes of this clause, it will be conclusively presumed that 15 percent (%) of the price of *each acre, mile or ton* represents the Base Cost of *Highway Diesel* and the resulting Base Cost will be the basis upon which adjustment will be made under this clause. This Base Cost will be used in calculating all adjustments to the following line items:

- Cut/Skid/Deck Tractor Units Item 4-ALL
- Cut/Skid/Deck Skyline/Tether Units Item 5-ALL
- Load/Haul/Road Maintenance Items 6-ALL
- Road Reconstruction Items: 7.1, 7.2, 7.3, 7.4, 7.5, 7.6, 7.7, 7.8, 7.9, 7.10, 7.11, 7.12, 7.13, 7.14, 7.15, 7.16, 7.17, 7.18, 7.25, and 7.26
- Fuels and Reforestation Items: 8.1, 8.2, 8.4, 8.6, 8.8, 8.81, 8.82, 8.10, and 8.11
- Temporary Road Construction and Obliteration Item 9-ALL
- Erosion Control Item 10-ALL

A new Base Cost will be calculated annually based on the newly adjusted year prices.

(d) The percentage of the price of the indexed commodity (see paragraph (c)) remains fixed throughout the life of the contract and is not subject to modification under this clause. Any pricing actions pursuant to the “Changes”

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clause or other clause or provision of the contract, except for this clause, will be priced as though there were no provisions for economic price adjustment.

(e) All price adjustments shall be applicable only to the specific contract adjustment period to which the calculations are made. For every contract adjustment period, new calculations shall be made and new prices determined. Every adjustment during the Base Year shall be based on the original contract prices for that contract year and every adjustment during an subsequent year shall be based on the original contract prices. The Contracting Officer must make new calculations for each and every contract adjustment period specified in paragraph (f) and at the beginning of each new option year, if different.

(f) The dates of contract adjustment shall be annually 30 days prior to the start of the normal operating season. The Contracting Officer shall retain a copy of the Base Index in the contract file and, on each date of adjustment specified herein, obtain a copy of the Adjusting Index. The Contracting Officer shall calculate the adjustment due and shall, within 5 business days, issue a modification to the contract adjusting the contract or unit price(s). The adjusted contract or unit price(s) shall be effective for all options exercised or services provided after the date of contract adjustment, as specified in this paragraph (f), until the date of the next contract adjustment. If the Contracting Officer fails to act, the Contractor shall request a contract adjustment in writing and any subsequent adjustment shall be retroactive to the applicable date of contract adjustment.

(g) An example of an adjustment calculation is provided herein for informational purposes only.

(1) For purposes of this example, assume that a contract is for timber hauling services, that the contract price is \$30.00 per ton, that price adjustments will be made on the basis of the cost of diesel, that the cost of diesel represents 15% of the total cost per ton (the Base Cost is 15% of \$30 (the per ton price in Line Item X), or \$4.50), and that contract adjustments will be made annually. If the Base Index (the price of diesel the week prior to receipt of bids) is \$4.53 per gallon and the price of diesel at the first date of contract adjustment is \$5.80 going per gallon, the calculations for contract price adjustment would be as follows:

Adjusting Index (most recent Index cost of gasoline as of the date of the first adjustment period)	\$5.80 per gallon.
Minus the Base Index (Index cost of gasoline as of the date of receipt of offers)	-\$4.53 per gallon.
Equals increase (or decrease) to the Base Index	\$1.27
Divide increase (or decrease) to the Base Index by the Base Index	$\$1.27 \div \$4.53 = .2803$ * (28.03% increase).
Apply fuel fraction adjustment	$0.15 \times .2803 = .042045$
New Ton Price	$30.00 \times 1.042045 =$ 31.26 per ton

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(2) For the second contract adjustment period, all calculations would be based on the original contract bid price, \$4.53 per gallon in this example. If the price of diesel reduced to \$4.25 per gallon, the calculations for the second economic price adjustment period would be as follows:

Adjusting Index (most recent Index cost of gasoline as of the date of the second adjustment period)	\$4.25 per gallon.
Minus the Base Index (Index cost of gasoline as of the date of receipt of offers)	-\$4.53 per gallon.
Equals increase (or decrease) to Base Index	-\$0.28
Divide increase (or decrease) to the Base Index by the Base Index	$-\$0.28 / -\$4.53 = -0.0618$ (6.181% decrease).
Apply fuel fraction adjustment	$0.15 * -0.0618 = -0.00927$
New Ton Price	$30.00 * -1.00927 = 29.72$ per ton

(h) Price adjustments pursuant to this clause, which shall be made by contract modification issued by the Contracting Officer, shall show the Base Index (see paragraph (b)(1)), the Adjusting Index, the Base Cost (see paragraph (c)), the mathematical calculations used to arrive at the adjusted contract unit price, and the effective date of the adjustment.

(i) In the event that U.S. Energy Information Administration discontinues, or alters substantially, its method of calculating the Index cited herein, the parties shall mutually agree upon an appropriate substitute for determining the price adjustment described herein. If the Contracting Officer determines that the Index consistently and substantially fails to reflect market conditions, the Contracting Officer may modify the contract to specify use of an appropriate substitute index, effective on the date the Index specified herein begins to consistently and substantially fail to reflect market conditions.

(j) Any dispute arising under this clause shall subject to the “Disputes” clause of the contract.

54. 52.222-43 FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS-PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS).(DEVIATION DATE)

(a) This clause applies to both contracts subject to area prevailing wage determinations and contracts subject to collective bargaining agreements.

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(b) The Contractor warrants that the prices in this contract do not include any allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

(c) The wage determination, issued under the Service Contract Labor Standards statute, (41 U.S.C. chapter 67), by the Administrator, Wage and Hour Division, U.S. Department of Labor, current on the anniversary date of a multiple year contract or the beginning of each renewal option period, must apply to this contract. If no such determination has been made applicable to this contract, then the Federal minimum wage as established by section 6(a)(1) of the Fair Labor Standards Act of 1938, as amended, (29 U.S.C. 206) current on the anniversary date of a multiple year contract or the beginning of each renewal option period, must apply to this contract.

(d) The contract price, contract unit price labor rates, or fixed hourly labor rates will be adjusted to reflect the Contractor's actual increase or decrease in applicable wages and fringe benefits to the extent that the increase is made to comply with or the decrease is voluntarily made by the Contractor as a result of:

(1) The Department of Labor wage determination applicable on the anniversary date of the multiple year contract, or at the beginning of the renewal option period. For example, the prior year wage determination required a minimum wage rate of \$4.00 per hour. The Contractor chose to pay \$4.10. The new wage determination increases the minimum rate to \$4.50 per hour. Even if the Contractor voluntarily increases the rate to \$4.75 per hour, the allowable price adjustment is \$.40 per hour;

(2) An increased or decreased wage determination otherwise applied to the contract by operation of law; or

(3) An amendment to the Fair Labor Standards Act of 1938 that is enacted after award of this contract, affects the minimum wage, and becomes applicable to this contract under law.

(e) Any adjustment will be limited to increases or decreases in wages and fringe benefits as described in paragraph (d) of this clause, and the accompanying increases or decreases in social security and unemployment taxes and workers' compensation insurance, but must not otherwise include any amount for general and administrative costs, overhead, or profit.

(f) The Contractor must notify the Contracting Officer of any increase claimed under this clause within 30 days after receiving a new wage determination unless this notification period is extended in writing by the Contracting Officer. The Contractor must promptly notify the Contracting Officer of any decrease under this clause, but nothing in the clause shall preclude the Government from asserting a claim within the period permitted by law. The notice must contain a statement of the amount claimed and the change in fixed hourly rates (if this is a time-and-materials or labor-hour contract), and any relevant supporting data, including payroll records, that the Contracting Officer may reasonably require. Upon agreement of the parties, the contract price, contract unit price labor rates, or fixed hourly rates must be modified in writing. The Contractor must continue performance pending agreement on or determination of any such adjustment and its effective date.

(g) The Contracting Officer or an authorized representative must have access to and the right to examine any directly pertinent books, documents, papers and records of the Contractor until the expiration of 3 years after final payment under the contract.

55. SALVAGE MATERIAL- RIGHT OF FIRST OFFER

In the event of natural disturbance or other changed conditions (including but not limited to wildfire, insect or disease outbreak, windthrow, or flood) that materially alter the condition of the Contract Area, the Contractor shall be afforded the right of first offer to perform timber preparation and/or harvest implementation services associated with salvage operations, at the direction of the Contracting Officer.

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- (a) *Offer of Work.* The Contracting Officer will provide the Contractor written notice of the opportunity to perform salvage preparation and/or harvest implementation work.
- (b) *Contractor Response.* The Contractor shall notify the Contracting Officer in writing within the time specified in the notice whether it elects to perform the salvage work.
- (c) *Acceptance.* If the Contractor accepts, scope and schedule adjustments shall be documented in a written contract modification prior to commencement of salvage work. Minimum rates for salvage material shall be based on Forest Service appraisal methods in effect at the time of appraisal, consistent with fair market value requirements (16 U.S.C. 472a) and applicable Forest Service policy.
- (d) *Refusal.* If the Contractor declines or fails to respond within the specified time, the affected portion of the Contract Area may be removed from this contract, and the salvage material may be competitively offered by the Forest Service.
- (e) *Compliance.* All salvage activities performed under this contract shall remain subject to applicable environmental, safety, and resource protection requirements.

56. OPTIONAL LINE ITEMS

The Government may fund and unilaterally exercise optional line items identified in the schedules, in the quantity and at the awarded price. The Contracting Officer may exercise unfunded options by written notice to the Contractor within the first seven years of the period of performance unless otherwise agreed. Optional items may be funded, at the sole discretion of the Contracting Officer, with either (a) appropriated dollars or (b) non-monetary credit unless otherwise agreed between the parties.

57. OPTION FOR INCREASED QUANTITY

The Government and the Contractor may, by mutual written agreement, increase the quantity of any line item identified in the schedules. Unless otherwise agreed, such increases shall be at the unit price specified in the contract. Adjustments to quantities may be considered where changed conditions arise that affect performance, mission requirements, or program needs. The parties agree to increase quantities under this clause shall apply during the first seven years of the period of performance, unless otherwise agreed in writing. Any increase in quantities shall require bilateral agreement of the parties. Optional line-item increases may be funded with either (a) appropriated dollars or (b) non-monetary credit as agreed between the parties.

****The following clauses and provisions apply to road reconstruction requirements only****

58. AGAR 452.211-73 VARIATION IN ESTIMATED QUANTITY (SEP 2025)

If the actual quantity of a unit-priced item varies by more than 15% from the estimated quantity, either party may request an equitable adjustment in the contract price. The adjustment will be based on cost changes due to variations above 115% or below 85% of the estimated quantity. If this variation delays completion, the Contractor may request a time extension in writing. The request must be received by the Contracting Officer within 10 days of the delay's start or within such further period granted by the Contracting Officer before the final contract settlement. The Contracting Officer will review the request and, if justified, extend the completion date.

59. FAR 52.228-1 BID GUARANTEE (SEP 1996)

- (a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.
- (b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's

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check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds –

(1) To unsuccessful bidders as soon as practicable after the opening of bids, and (2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

60. BOND REQUIREMENTS

The Contractor shall furnish and maintain Performance and Payment Bonds or agreed to Alternate Payment Protections in amounts equal to the current value of all contract work subject to bonding, as determined by the Contracting Officer. Bond amounts may increase or decrease over the life of the contract in accordance with funded work, exercised options, or reductions in scope.

61. FAR 52.228-15 PERFORMANCE AND PAYMENT BONDS -- CONSTRUCTION (JUN 2020) (DEVIATION MAY 2023)

(a) *Definitions.* As used in this clause --

“Original contract price” means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) *Amount of required bonds.* Unless the resulting contract price is valued at or below the threshold specified in Federal Acquisition Regulation [28.102-1](#)(a) on the date of award of this contract, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) *Performance Bonds (Standard Form 25, **EXCEPT THAT A SEAL IS NOT REQUIRED**).* The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) *Payment Bonds (Standard Form 25-A, **EXCEPT THAT A SEAL IS NOT REQUIRED**).* The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) *Additional bond protection.*

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

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(c) *Furnishing executed bonds.* The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) *Surety or other security for bonds.* The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the *Federal Register* or may be obtained from the:

U.S. Department of Treasury
Financial Management Service
Surety Bond Branch
3700 East West Highway, Room 6F01
Hyattsville, MD 20782
Or via the internet at <http://www.fms.treas.gov/c570/>.

(e) *Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)).* Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

62. FAR 52.228-11 INDIVIDUAL SURETY - PLEDGE OF ASSETS (FEB 2021) (DEVIATION MAY 2023)

(a) The Contractor shall obtain from each person acting as an individual surety on a performance bond or a payment bond -

(1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) 28.203-1; and

(2) Standard Form 28, Affidavit of Individual Surety, **[except that the words “being duly sworn, depose and say” on the Standard Form 28 are replaced with the word “affirm” and the Standard Form 28 is not required to be sworn and notarized in block 12].**

(b) The Contracting Officer may release a portion of the security interest on the individual surety's assets based upon substantial performance of the Contractor's obligations under its performance bond. The security interest in support of a performance bond shall be maintained—

(1) Contracts for the construction, alteration, or repair of any public building or public work of the Federal Government exceeding \$150,000 (40 U.S.C. 3131). Until completion of any warranty period, or for 1 year following final payment, whichever is later.

(2) Contracts subject to alternative payment protection (see FAR 28.102-1(b)(1)). For the full contract performance period plus 1 year.

(3) Other contracts not subject to the requirements of paragraph (b)(1) of this clause. Until completion of any warranty period, or for 90 days following final payment, whichever is later.

(c) A surety's assets pledged in support of a payment bond may be released to a subcontractor or supplier upon Government receipt of a Federal district court judgment, or a sworn statement by the subcontractor or supplier that the claim is correct along with a notarized authorization of the release by the surety stating that it

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approves of such release. The security interest on the individual surety's assets in support of a payment bond shall be maintained—

(1) Contracts for the construction, alteration, or repair of any public building or public work of the Federal Government exceeding \$150,000 which require performance and payment bonds (40 U.S.C. 3131). For 1 year following final payment, or until resolution of all pending claims filed against the payment bond during the 1-year period following final payment, whichever is later.

(2) Contracts subject to alternative payment protection (see FAR 28.102-1(b)(1)). For the full contract performance period plus 1 year.

(3) Other contracts not subject to the requirements of paragraph (c)(1) of this clause. For 90 days following final payment.

(d) The Contracting Officer may allow the Contractor to substitute an individual surety, for a performance or payment bond, after contract award. The Contractor shall comply with the requirements of paragraph (a) of this clause within the timeframe established by the Contracting Officer.

63. FAR 52.228-13 ALTERNATE PAYMENT PROTECTIONS (JULY 2000)

(a) The Contractor shall submit one of the following payment protections:

(1) Payment Bond

(2) Irrevocable Letter of Credit (ILC)

(3) Money orders, drafts, cashier's checks, or certified checks.

(b) The amount of the payment protection shall be **100** percent of the contract price.

(c) The submission of the payment protection is required within **10** days of contract award.

(d) The payment protection shall provide protection for the full contract performance period plus a one-year period.

(e) Except for escrow agreements and payment bonds, which provide their own protection procedures, the Contracting Officer is authorized to access funds under the payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred, and to withhold such funds pending resolution by administrative or judicial proceedings or mutual agreement of the parties.

(f) When a tripartite escrow agreement is used, the Contractor shall utilize only suppliers of labor and material that signed the escrow agreement.

****(End of Road Reconstruction specific clauses and provisions)****

64. 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>

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65. 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>

The following clauses and provisions are incorporated by reference:

NUMBER	TITLE	DATE
The following clauses and provisions apply to all orders		
52.203-6	Restrictions on Subcontractor Sales to the Government (Alternate 1)	JUN 2020
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	JAN 2017
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-7	System for Award Management	AUG 2025
52.204-13	System for Award Management—Maintenance	AUG 2025
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	SEP 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	SEP 2025
52.209-12	Certification Regarding Tax Matters	OCT 2020
52.219-8	Utilization of Small Business Concerns	NOV 2025
52.219-9	Small Business Subcontracting Plan	NOV 2025
52.219-16	Liquidated Damages—Subcontracting Plan	NOV 2025
52.222-3	Convict Labor	JUN 2003
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-42	Statement of Equivalent Rates for Federal Hires	MAY 2014
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment	MAY 2014
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-52	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.	MAY 2014
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.224-3	Privacy Training	JAN 2017
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
52.229-11	Tax on Certain Foreign Procurements—Notice and Representation.	JUN 2020
52.229-12	Tax on Certain Foreign Procurements	FEB 2021
52.232-33	Payment by Electronic Funds Transfer—System for Award Management	OCT 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAY 2023
52.233-2	Service of Protest	SEP 2025

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NUMBER	TITLE	DATE
52.232-3	Protest after Award	SEP 2025
52.232-4	Applicable Law for Breach of Contract Claim	SEP 2025
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	AUG 2025
52.240-91	Security Prohibitions and Exclusions	AUG 2025
52.242-14	Suspension of Work	APR 1984
52.244-6	Subcontracts for Commercial Products and Commercial Services	JAN 2025
The following clauses and provisions apply to incidental construction requirements only		
52.222-6	Construction Wage Rate Requirements	AUG 2018
52.222-7	Withholding of Funds	MAY 2014
52.222-8	Payrolls and Basic Records	JUL 2021
52.222-9	Apprentices and Trainees	JUL 2005 DEVIATION FEB 2025
52.222-10	Compliance with Copeland Act Requirements	FEB 1988
52.222-11	Subcontracts (Labor Standards)	MAY 2014
52.222-12	Contract Termination-Debarment	MAY 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	MAY 2014
52.222-14	Disputes Concerning Labor Standards	FEB 1988
52.222-15	Certification of Eligibility	MAY 2014
52.225-9	Buy American-Construction Materials	OCT 2022
52.228-1	Bid Guarantee	SEP 1996
52.228-11	Individual Surety - Pledge of Assets	FEB 2021 DEVIATION MAY 2023
52.228-13	Alternate Payment Protections	JULY 2000
52.228-15	Performance and Payment Bonds -- Construction	JUN 2020 DEVIATION MAY 2023
52.236-2	Differing Site Conditions	APR 1984
52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
52.236-5	Material and Workmanship	APR 1984
52.236-6	Superintendence by the Contractor	APR 1984
52.236-7	Permits and Responsibilities	NOV 1991
52.236-8	Other Contracts	APR 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
52.236-10	Operations and Storage Areas	APR 1984
52.236-11	Use and Possession Prior to Completion	APR 1984
52.236-12	Cleaning Up	APR 1984
52.236-13	Accident Protection (Alternate 1)	NOV 1991
52.236-15	Schedules for Construction Contracts	APR 1984
52.236-17	Layout of Work	APR 1984
52.236-21	Specifications and Drawings for Construction	FEB 1997
52.246-12	Inspection of Construction	AUG 1996

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66. STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (MAY 2014), THE FOLLOWING INFORMATION IS PROVIDED IN ACCORDANCE WITH FAR 52.222-42:

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage	Fringe Benefits
Heavy Equipment Operator WG-8	\$32.34/hr.	*
Crew Leader GS-6	\$21.76/hr.	*
Forestry Tech GS-5	\$19.52/hr.	*
Laborer GS-3 or GS-4	\$15.54or \$17.45/hr.	*

*FRINGE BENEFITS: Life, Accident and Health Insurance and Sick Leave Programs - 5.1 percent of basic hourly rate.

Paid Holidays - 11 per year: New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day

Vacation - 13 days paid vacation per year up to 3 years of service, 20 days after 3 years of service, and 26 after 15 years of service.

Retirement - 7 percent basic hourly rate.

67. LIST OF ATTACHMENTS

The following attachments may be made a part of a solicitation and any resultant contract.

Title	Pages
1. Appendix A – Technical Specifications for Service Work Items	14
2. Appendix B – Jungle Bird Timber Removal Specifications	48
3. Appendix C – Jungle Bird Road Maintenance Plan	17
4. Appendix D – Road Reconstruction Specifications	X
a) – FS-FP-24 Supplemental Specifications	X
5. Maps – Vicinity	XX
A. – Mandatory Contract Area Map	XX
B. – Optional Contract Area Maps	
6. Project Design Elements	5
7. Layout Note Template	2
8. Road Survey Description of Work	3
9. End of the World Marking Guide	4
10. Least Cost Road Standards	4
11. FP24 Specifications	902
12. PCT Survey Template	3
13. Planting and Reforestation Description of Work	17
14. PCT Description of Work	2
15. Jungle Bird Mandatory Timber Cruise	59

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END OF ADDENDUM TO FAR 52-212-4

**68. FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
(AUG 2025)**

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;
- (5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and
- (6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

- (1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.
- (2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.
- (3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.
- (4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids).* The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

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(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

- (1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.
- (2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.
- (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
- (4) A summary of the rationale for award.
- (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
- (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

ADDENDUM TO FAR 52.212-1:

Multiple awards. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

69. FAR 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (NOV 2025)

***This clause only applies to large businesses and must accompany any proposal.**

(a) This clause does not apply to small business concerns.

(b) *Definitions*. As used in this clause—

Alaska Native Corporation (ANC) means any Regional Corporation, Village Corporation, Urban Corporation, or Group Corporation organized under the laws of the State of Alaska in accordance with the Alaska Native Claims Settlement Act (43 U.S.C. 1601, *et seq.*) and which is considered a minority and economically disadvantaged concern under the criteria at 43 U.S.C. 1626(e)(1). This definition also includes ANC direct and indirect subsidiary corporations, joint ventures, and partnerships that meet the requirements of 43 U.S.C. 1626(e)(2).

Commercial plan means a subcontracting plan (including goals) that covers the offeror's fiscal year and that applies to the entire production of commercial products and commercial services sold by either the entire company or a portion thereof (e.g., division, plant, or product line).

Commercial product means a product that satisfies the definition of "commercial product" in Federal Acquisition Regulation (FAR) 2.101.

Commercial service means a service that satisfies the definition of "commercial service" in FAR 2.101.

Electronic Subcontracting Reporting System (eSRS) means the Governmentwide, electronic, web-based system for small business subcontracting program reporting. The eSRS is located at <http://www.esrs.gov>.

Indian tribe means any Indian tribe, band, group, pueblo, or community, including native villages and native groups (including corporations organized by Kenai, Juneau, Sitka, and Kodiak) as defined in the Alaska Native Claims Settlement Act (43 U.S.C. 1601 *et seq.*), that is recognized by the Federal Government as eligible for services from the Bureau of Indian Affairs in accordance with 25 U.S.C. 1452(c). This definition also includes Indian-owned economic enterprises that meet the requirements of 25 U.S.C. 1452(e).

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Individual subcontracting plan means a subcontracting plan that covers the entire contract period (including option periods), applies to a specific contract, and has goals that are based on the offeror's planned subcontracting in support of the specific contract, except that indirect costs incurred for common or joint purposes may be allocated on a prorated basis to the contract.

Master subcontracting plan means a subcontracting plan that contains all the required elements of an individual subcontracting plan, except goals, and may be incorporated into individual subcontracting plans, provided the master subcontracting plan has been approved.

Reduced payment means a payment for less than the amount agreed upon in a subcontract in accordance with its terms and conditions, for supplies and services for which the Government has paid the prime contractor.

Subcontract means any agreement (other than one involving an employer-employee relationship) entered into by a Federal Government prime contractor or subcontractor calling for supplies or services required for performance of the contract or subcontract.

Total contract dollars means the final anticipated dollar value, including the dollar value of all options.

Untimely payment means a payment to a subcontractor that is more than 90 days past due under the terms and conditions of a subcontract for supplies and services for which the Government has paid the prime contractor.

(c)(1) The Offeror shall include with its proposal, submitted in response to this solicitation, a subcontracting plan that separately addresses subcontracting with small business, veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), HUBZone small business, small disadvantaged business (SDB), and women-owned small business (WOSB) concerns. If the Offeror is submitting an individual subcontracting plan, the plan must separately address subcontracting with small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns, with a separate part for the basic contract and separate parts for each option (if any). The Contracting Officer shall include the plan in and make it a part of the resultant contract. The Offeror shall negotiate the subcontracting plan within the timeframe specified by the Contracting Officer. If the Offeror fails to submit and negotiate a subcontracting plan, the Offeror shall not be eligible for award of a contract.

(2)(i) Unless the Contractor has reason to question the representations, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business or SDB, if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(ii) Unless the Contractor has reason to question the representations, it may accept a subcontractor's representations of its size and socioeconomic status as a small business or SDB in the System for Award Management (SAM) if—

(A) The subcontractor is registered in SAM; and

(B) The subcontractor represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.

(iii) The Contractor may not require that the subcontractor register in SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.

(iv) A contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or SDB status.

(v) In order to be eligible as a VOSB, SDVOSB, HUBZone small business, or WOSB concern, subcontractor under a subcontracting plan, the small business must be certified by the Small Business Administration

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(SBA) as that socioeconomic status. SBA certifications are in the Small Business Search (SBS) website at <https://search.certifications.sba.gov/>.

(d) The Offeror's subcontracting plan shall include the following: (1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns as subcontractors. For individual subcontracting plans, and if required by the Contracting Officer, goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance and may include a proportionate share of products and services that are normally allocated as indirect costs. In accordance with 15 U.S.C. 657r(a), an Offeror that is a mentor with an SBA-approved mentor-protégé agreement (see 13 CFR 125.9) and awards a subcontract to its protégé may apply the costs incurred for training it provides to its protégé toward its subcontracting plan goals, if the protégé is a covered territory business or the protégé's principal office is located in the Commonwealth of Puerto Rico. In accordance with 43 U.S.C. 1626—

(i) Count subcontracts awarded to an ANC or Indian tribe toward the subcontracting goals for small business and small disadvantaged business concerns, regardless of the size or SBA certification status of the ANC or Indian tribe; and

(ii) If one or more subcontractors are in the subcontract tier between the prime Contractor and the ANC or Indian tribe, then the ANC or Indian tribe shall designate the appropriate Contractor(s) to count the subcontract towards its small business and small disadvantaged business subcontracting goals.

(A) In most cases, the appropriate Contractor is the Contractor that awarded the subcontract to the ANC or Indian tribe.

(B) If the ANC or Indian tribe designates more than one Contractor to count the subcontract toward its goals, the ANC or Indian tribe shall designate only a portion of the total subcontract award to each Contractor. The sum of the amounts designated to various Contractors cannot exceed the total value of the subcontract.

(C) The ANC or Indian tribe shall give a copy of the written designation to the Contracting Officer, the prime Contractor, and the subcontractors between the prime Contractor and the ANC or Indian tribe within 30 days of the date of the subcontract award.

(D) If the Contracting Officer does not receive a copy of the ANC's or the Indian tribe's written designation within 30 days of the subcontract award, the Contracting Officer will consider the Contractor that awarded the subcontract to the ANC or Indian tribe the designated Contractor.

(2) A statement of—

(i) Total dollars planned to be subcontracted for an individual subcontracting plan; or the Offeror's total projected sales, expressed in dollars, and the total value of projected subcontracts, including all indirect costs except as described in paragraph (g) of this clause, to support the sales for a commercial plan;

(ii) Total dollars planned to be subcontracted to small business concerns (including ANC and Indian tribes);

(iii) Total dollars planned to be subcontracted to veteran-owned small business concerns;

(iv) Total dollars planned to be subcontracted to service-disabled veteran-owned small business;

(v) Total dollars planned to be subcontracted to HUBZone small business concerns;

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(vi) Total dollars planned to be subcontracted to small disadvantaged business concerns (including ANCs and Indian tribes); and

(vii) Total dollars planned to be subcontracted to women-owned small business concerns.

(3) A description of the principal types of supplies and services to be subcontracted, and an identification of the types planned for subcontracting to-

(i) Small business concerns;

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns; and

(vi) Women-owned small business concerns.

(4) A description of the method used to develop the subcontracting goals in paragraph (d)(1) of this clause.

(5) A description of the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, SAM, veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining a small, veteran-owned small, service-disabled veteran-owned small, HUBZone small, small disadvantaged, and women-owned small business source list. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

(6) A statement as to whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with-

(i) Small business concerns (including ANC and Indian tribes);

(ii) Veteran-owned small business concerns;

(iii) Service-disabled veteran-owned small business concerns;

(iv) HUBZone small business concerns;

(v) Small disadvantaged business concerns (including ANC and Indian tribes); and

(vi) Women-owned small business concerns.

(7) The name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual.

(8) A description of the efforts the Offeror will make to assure that small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns have an equitable opportunity to compete for subcontracts.

(9) Assurances that the Offeror will include the clause of this contract entitled "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated

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as small business concerns by statute for certain purposes (e.g., ANCs, see 13 CFR 125.3(b)(2))) that receive subcontracts in excess of the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

(10) Assurances that the Offeror will–

- (i) Cooperate in any studies or surveys as may be required;
- (ii) Submit periodic reports so the Government can determine the extent of compliance by the Contractor with the subcontracting plan;
- (iii) Include subcontracting data for each order when reporting subcontracting achievements for indefinite-delivery, indefinite-quantity contracts with individual subcontracting plans where the contract is intended for use by multiple agencies;
- (iv) Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), in accordance with paragraph (l) of this clause using the Electronic Subcontracting Reporting System (eSRS) at <http://www.esrs.gov>. The reports shall provide information on subcontract awards to small business concerns (including ANCs and Indian tribes that are not small businesses), veteran-owned small business concerns, service-disabled veteran-owned small business concerns, HUBZone small business concerns, small disadvantaged business concerns (including ANCs and Indian tribes that have not been certified by the Small Business Administration as small disadvantaged businesses), women-owned small business concerns, and for NASA only, Historically Black Colleges and Universities and Minority Institutions. Reporting shall be in accordance with this clause, or as provided in agency regulations;
- (v) Ensure that its subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using eSRS;
- (vi) Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs; and
- (vii) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.

(11) A description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the Offeror's efforts to locate small business, VOSB, SDVOSB, HUBZone small business, SDB, and WOSB concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

- (i) Source lists (e.g., SAM), guides, and other data that identify small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns.
- (ii) Organizations contacted in an attempt to locate sources that are small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concerns.

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(iii) Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, indicating-

- (A) Whether small business concerns were solicited and, if not, why not;
- (B) Whether veteran-owned small business concerns were solicited and, if not, why not;
- (C) Whether service-disabled veteran-owned small business concerns were solicited and, if not, why not;
- (D) Whether HUBZone small business concerns were solicited and, if not, why not;
- (E) Whether small disadvantaged business concerns were solicited and, if not, why not;
- (F) Whether women-owned small business concerns were solicited and, if not, why not; and
- (G) If applicable, the reason award was not made to a small business concern.

(iv) Records of any outreach efforts to contact-

- (A) Trade associations;
- (B) Business development organizations;
- (C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources; and
- (D) Veterans service organizations.

(v) Records of internal guidance and encouragement provided to buyers through-

- (A) Workshops, seminars, training, etc.; and
- (B) Monitoring performance to evaluate compliance with the program's requirements.

(vi) On a contract-by-contract basis, records to support award data submitted by the offeror to the Government, including the name, address, and business size of each subcontractor. Contractors having commercial plans need not comply with this requirement.

(12) Assurances that the Offeror will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal. Responding to a request for a quote does not constitute use in preparing a bid or proposal. The Offeror used a small business concern in preparing the bid or proposal if-

- (i) The Offeror identifies the small business concern as a subcontractor in the bid or proposal or associated small business subcontracting plan, to furnish certain supplies or perform a portion of the subcontract; or
- (ii) The Offeror used the small business concern's pricing or cost information or technical expertise in preparing the bid or proposal, where there is written evidence of an intent or understanding that the small business concern will be awarded a subcontract for the related work if the Offeror is awarded the contract.

(13) Assurances that the Contractor will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services, or materials or obtain the performance

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of construction work as described in paragraph (d)(12) of this clause. The Contractor shall submit the written explanation to the Contracting Officer within 30 days of contract completion.

(14) Assurances that the Contractor will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to payment to or utilization of a subcontractor.

(15) Assurances that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the underlying subcontract, and notify the Contracting Officer when the prime contractor makes either a reduced or an untimely payment to a small business subcontractor (see 52.242-5).

(e) In order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor shall perform the following functions:

(1) Assist small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns by arranging solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

(2) Provide adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.

(3) Counsel and discuss subcontracting opportunities with representatives of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business firms.

(4) Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Small Business Search (SBS) at <https://search.certifications.sba.gov/>.

(5) Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.

(6) For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.

(7) Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

(f) A master subcontracting plan on a plant or division-wide basis that contains all the elements required by paragraph (d) of this clause, except goals, may be incorporated by reference as a part of the subcontracting plan required of the Offeror by this clause; provided-

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- (1) The master subcontracting plan has been approved;
- (2) The Offeror ensures that the master subcontracting plan is updated as necessary and provides copies of the approved master subcontracting plan, including evidence of its approval, to the Contracting Officer; and
- (3) Goals and any deviations from the master subcontracting plan deemed necessary by the Contracting Officer to satisfy the requirements of this contract are set forth in the individual subcontracting plan.

(g) A commercial plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services. The commercial plan shall relate to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract. Once the Contractor's commercial plan has been approved, the Government will not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided by the Contractor continues to meet the definition of a commercial product or commercial service. A Contractor with a commercial plan shall comply with the reporting requirements stated in paragraph (d)(10) of this clause by submitting one SSR in eSRS for all contracts covered by its commercial plan. A Contractor authorized to use a commercial subcontracting plan shall include in its subcontracting goals and in its SSR all indirect costs, with the exception of those such as the following: Employee salaries and benefits; payments for petty cash; depreciation; interest; income taxes; property taxes; lease payments; bank fees; fines, claims, and dues; original equipment manufacturer relationships during warranty periods (negotiated up front with the product); utilities and other services purchased from a municipality or an entity solely authorized by the municipality to provide those services in a particular geographical region; and philanthropic contributions. This report shall be acknowledged or rejected in eSRS by the Contracting Officer who approved the plan. This report shall be submitted within 30 days after the end of the Government's fiscal year.

(h) The Contracting Officer will consider prior compliance of the Offeror with other such subcontracting plans under previous contracts in determining the responsibility of the Offeror for award of the contract.

(i) A contract may have no more than one subcontracting plan. When a contract modification exceeds the subcontracting plan threshold in FAR 19.702(a), or an option is exercised, the goals of the existing subcontracting plan shall be amended to reflect any new subcontracting opportunities. When the goals in a subcontracting plan are amended, these goal changes do not apply retroactively.

(j) Subcontracting plans are not required from subcontractors when the prime contract is awarded under FAR part 12, Acquisition of Commercial Products and Commercial Services, or when the subcontractor provides a commercial product or commercial service subject to the clause at FAR 52.244-6, Subcontracts for Commercial Products and Commercial Services, under a prime contract.

(k) The Contracting Officer will consider failure of the Contractor or subcontractor to comply in good faith with the clause of this contract entitled "Utilization Of Small Business Concerns," or an approved plan required by this clause, a material breach of the contract and may consider the failure in any past performance evaluation of the Contractor.

(l) The Contractor shall submit ISRs and SSRs using the web-based eSRS at <https://www.esrs.gov>. Do not include purchases from a corporation, company, or subdivision that is an affiliate of the Contractor or subcontractor in these reports. Treat subcontract awards by affiliates as subcontract awards by the Contractor. Limit subcontract award data reported by the Contractor and subcontractors to awards made to their immediate next-tier subcontractors. The Contractor and its subcontractors cannot take credit for awards made to lower tier subcontractors, unless the Contractor or subcontractor has been designated to receive a small business or SDB credit from an ANC or Indian tribe. Include in these reports only subcontracts involving performance in the United States or its outlying areas, with the exception of subcontracts under a contract awarded by the State Department

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or any other agency that has statutory or regulatory authority to require subcontracting plans for subcontracts performed outside the United States and its outlying areas

(1) *ISR*. This report is not required for commercial plans. The report is required for each contract containing an individual subcontracting plan.

(i) The report shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. A report is also required for each contract within 30 days of contract completion. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the Contracting Officer. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or the previous reporting period. When the Contracting Officer rejects an ISR, the Contractor shall submit a corrected report within 30 days of receiving the notice of ISR rejection.

(ii)(A) When a subcontracting plan contains separate goals for the base period of the contract and each option, the dollar goal inserted on this report shall be the sum of the base period through the current option; for example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.

(B) If a subcontracting plan has been added to the contract pursuant to 19.302-1 or 19.301(e), the Contractor shall report its achievements on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.

(iii) When a subcontracting plan includes indirect costs in the goals, include these costs in this report.

(iv) The authority to acknowledge receipt or reject the ISR resides–

(A) In the case of the prime Contractor, with the Contracting Officer; and

(B) In the case of a subcontract with a subcontracting plan, with the entity that awarded the subcontract.

(2) *SSR*. (i) Reports submitted under individual contract plans–

(A) This report encompasses all subcontracting under prime contracts and subcontracts with an executive agency, regardless of the dollar value of the subcontracts. This report also includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.

(B) The report may be submitted on a corporate, company or subdivision (e.g. plant or division operating as a separate profit center) basis, unless otherwise directed by the agency.

(C) If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency's contracts, provided at least one of that agency's contracts is over the applicable threshold specified in FAR 19.109(a), and the contract and contains a subcontracting plan. For DoD, a consolidated report shall be submitted for all contracts awarded by military departments/agencies and/or subcontracts awarded by DoD prime contractors.

(D) The report shall be submitted annually by October 30 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.

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(E) Subcontract awards that are related to work for more than one executive agency shall be appropriately allocated.

(F) The authority to acknowledge or reject SSRs in eSRS, including SSRs submitted by subcontractors with subcontracting plans, resides with the Government agency awarding the prime contracts unless stated otherwise in the contract.

(ii) Reports submitted under a commercial plan-

(A) The report shall include all subcontract awards under the commercial plan in effect during the Government's fiscal year and all indirect costs.

(B) The report shall be submitted annually, within thirty days after the end of the Government's fiscal year.

(C) If a Contractor has a commercial plan and is performing work for more than one executive agency, the Contractor shall specify the percentage of dollars attributable to each agency.

(D) The authority to acknowledge or reject SSRs for commercial plans resides with the Contracting Officer who approved the commercial plan.

70. INSTRUCTIONS FOR SUBMISSION OF OFFERS AND OTHER INFORMATION

(a) General Instructions - Proposals submitted in response to this solicitation shall be furnished in the following format:

- (1) Proposals shall be submitted as two separate documents - a technical proposal **and** a price proposal. Each part shall be separate and complete so that evaluation of one may be accomplished independently of the other. The price proposal shall be submitted with the solicitation forms, no breakdown of the unit price is required. The technical proposal must not contain reference to cost.
- (2) Offerors are cautioned that sufficient and detailed information must be presented in their technical proposals to enable the Government to evaluate their proposals fully in accordance with the evaluation and award criteria contained herein. The Government is not obligated to ask for additional information and in the absence of appropriate information, the proposal will be rated deficient.
- (3) Offerors may, at their discretion, submit alternate proposals or proposals which deviate from the requirement, provided that an offeror also submit a proposal for performance of the work as specified in this solicitation. Any "alternate" proposal may be considered if overall performance would be improved or not compromised, and if it is in the best interest of the Government. Alternate proposals, or deviations from any requirement of this RFQ, must be clearly identified.
- (4) The Government will evaluate proposals in accordance with FAR Clause 52.212-2 "Evaluation – Commercial Products and Commercial Services (NOV 2021)" evaluation criteria as set forth herein.
- (5) Offerors shall submit their proposal(s) in the following format:
 - (i) Completed, signed offer (The solicitation package, pages 1, the Schedule of Items (Inclusive of Timber) and all certifications).
 - (ii) Technical Proposal/Documentation (Benefit to the Local Community and Past Performance information) .
 - (iii) In addition to a successful firm's response to the solicitation, responses to all Evaluation Factors excepting Relevant Past Performance will be incorporated into the resulting contract by reference at time

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of award and retain the full force and effect as all of the other contractual terms and conditions hold therein.

(b) Technical Proposal. The technical proposal must present sufficient information to reflect a thorough understanding of the requirements and a detailed description of the organization, techniques, and procedures for achieving the objectives of the specifications and the project. Proposals that merely paraphrase the requirements of the Government's specifications or use such phrases as "will comply" or "standard techniques will be employed" will be considered unacceptable and will not be considered further.

As a minimum, the proposal must clearly provide the following:

Technical Approach

Work Activity Plan. Clearly describe how you and/or your subcontractors will meet both the project objectives and minimize resource damage. Include an explanation about how you have determined this approach, and what coordination will occur between the various operations.

Method. Describe the method or combination of methods you plan to utilize to accomplish the Mandatory Work Items and any of the Optional Work Items that you anticipate necessary, dependent on your operations. Include responses to each of these end results, specifications and objectives:

1. How will your operations refine commercial and non-commercial units from NEPA units.
2. How will your operations ensure that hard boundaries (RHCA buffers, Heritage/Arch ,Private, etc) are adhered to.
3. How will your operations meet marking guides for commercial removal.
4. How will your operations implement road survey, road reconstruction and maintenance activities.
5. How will your operations implement fuels/reforestation activities.
6. How will your operations perform erosion control to mitigate effects within the project area?
7. Describe how operations can maximize treatment of acres and utilization of products removed.
8. The Contractor shall provide a Quality Control Plan (QCP). Failure to submit the QCP will result in proposals not being evaluated. The QCP shall demonstrate how the Contractor will assure that quality of performance meets the cutting prescriptions, objectives and requirements of the contract. The QCP will not count towards the subfactor page limit.
 - a. The QCP shall specify:
 - i. How quality will be monitored and reported to the Contracting Officer and the COR to assure the performance standards are met, including plot numbers and plot size and types, and sample design (units with spacing).
 - ii. How work will be inspected.
 - iii. What type of equipment will the Inspector use to do the inspection.
 - iv. The supervision of the work.
 - v. Personnel who will be performing the quality control. Indicate whether persons who conduct inspections will have other responsibilities (supervision, production work, etc.).

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Equipment. Describe the equipment you will use to accomplish the Mandatory Work Items and the Optional Work Items that will be necessary dependent on your operations. Include make and model of proposed equipment.

Key Personnel. List the names and proposed duties of key personnel who will be assigned to the various work items of the project including the overall Project Manager, Logging Supervisor, Supervisor, and individual sub-managers (such as individuals supervising sub-contractors).

Timing. Provide a general plan for the sequence of work, including an estimated start date and completion date for both the Mandatory and Optional work items.

NOTE: *This is NOT a request for a detailed operations plan. After award and prior to start of work, the Contractor must submit an Operating Schedule (including start dates, units and work items, haul dates, etc.)*

Relevant Past Performance

The technical proposal must address past performance for both the Offeror and any proposed major subcontractors. OFFERORS SHOULD PROVIDE ONLY THE INFORMATION LISTED BELOW. Performance information will be requested from references provided and other known clients.

- (a) Submit a list of similar project work that has been completed by your firm or any of your proposed subcontractors in the last 3 years. Experience with implementation and successful accomplishment of DxD treatments should be noted, and within the past **5** years. Address past work specifically related to all of the work items shown in the Schedule of Supplies/Services of the SF 1449 in this solicitation. Please provide:

- * Names, addresses, telephone numbers and FAX numbers of principal officials in charge of the project who are familiar with your performance.
- * A description of the work performance.
- * The agency/company or individuals you worked for.
- * The size (value and acreage) and location of the contracts.
- * Contract numbers.

Benefit to Local Community

Explain how you will recruit and utilize labor, subcontractors, and other workforces from those counties adjacent to the Nez Perce - Clearwater National Forest.

- (a) Describe how and to what degree hiring or training of local residents as employees or as subcontractors would be accomplished in terms of retention, expansion, or creation of employment or training opportunities.
- (b) Describe how and to what degree materials, supplies, lodging, meals, or incidentals would be purchased within project areas.
- (c) Describe how any materials removed from Forest Service lands would be marketed and utilized in the project area. Include contributions to the development of biomass energy, integrated utilization, and/or value-added products for an existing market or emerging market. (if applicable)

Cost/Price

A firm's completion and submission of a unit price and total amount beginning on page 2 of the subject solicitation's Schedule of Items constitutes the fulfillment of the Government's price proposal requirements under this solicitation.

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71. INQUIRIES

Inquiries and all correspondence concerning this solicitation should be submitted in writing to the points of contact listed on the cover sheet and on SAM.gov.

72. SITE VISIT

Offerors/quoters are urged and expected to inspect sites where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

END OF ADDENDUM TO FAR 52-212-1

73. FAR 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (AUG 2025)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The offeror's proposal shall be in the format prescribed and shall contain a response to each of the areas identified, which affects the evaluation factors for award. The Government will determine the best overall value on the basis of the factors described below.

GENERAL: Proposals will be evaluated on the basis that the following technical factors are in descending order of importance whereby each factor is more important than the next: (1) Technical Approach being significantly more important than (2) Relevant Past Performance and (2) Relevant Past Performance being significantly more important than (3) Utilization of Local Work Forces/Benefit to Local Community. When combined, these technical evaluation factors are **approximately equal to cost or price**.

(a) **TECHNICAL CRITERIA.** The technical proposals will be evaluated and ranked according to the following criteria.

Technical Approach

This will address the Work Activity Plan, Method, Equipment, Key Personnel, and Timing factors. Proposals will be evaluated on how well proposed operations will be able to accomplish the project objectives (fuels reduction and resource protection) and the stewardship goal (ecosystem restoration) of the project.

- How well proposed operations will meet the end results for the project.
- How well proposed operations will meet safety considerations.
- How logical and reasonable the proposed sequence and schedule of operations fits the proposed timeframes and what degree, if any, shorter time frames are proposed.
- How experienced are key personnel in the work they will be performing?
- How suitable is the equipment and is it adequate to be used on this contract?
- How well the proposed schedule addresses the treatment of included timber (and biomass material, if applicable), from cutting to the removal from Forest Service land?
- What methods will be utilized to remove products harvested.
- How quality assurance will be monitored and documented for each item.

Individual elements of Technical Approach Ratings will be evaluated as follows. The aggregate of element ratings will be weighed equally to determine the final rating for Technical Approach:

- 1). Outstanding:** Proposal demonstrates a clear and logical plan with no identified risks to achieve the required end results, identifies specific key personnel who will be conducting inspections and the

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specific procedures they will use while inspecting, little to no scheduled work/contractual conflicts and realistic production rates for work items are provided to complete all work activities in the stated operating seasons, plan is presented in a very logical manner and size of work force reflects the production rates proposed.

- 2). **Satisfactory:** Proposal demonstrates a clear plan with acceptable risks to achieve the required end results, identifies key personnel or positions who will be conducting inspections and the procedures they will use while inspecting, some scheduled work/contractual conflicts that are determined acceptable and production rates for work items are provided to complete work activities within the stated periods of performance for each project area, plan is presented in a logical manner and size of work force reflects the production rates proposed.
- 3). **Marginal:** Proposal demonstrates a plan with increased risks to achieve the required end results, identification of key personnel or positions who will be conducting inspections and the procedures they will use while inspecting are unclear, existing work/contractual obligations are determined an increased risk and no plan is provided to complete work activities within the stated period of performance for each project area.
- 4). **Unacceptable:** Proposal fails to demonstrate an understanding for any of the Technical requirements in the solicitation.

Relevant Past Performance

The Government will consider the relevance of past performance information obtained in relation to the scope of this RFP with respect to both similar efforts, and the length and scope, number, complexity, and diversity of contracts completed by the offeror. Past performance, either positive or negative, which is considered by the Government to be more closely related to the scope of this project will be given additional weight in the evaluation process.

Offerors will be evaluated on their past performance of similar type contracts performed within the last three years in accordance with the following subfactors:

- a. Quality of services – Demonstrated ability to perform services in accordance with contract requirements.
- b. Customer satisfaction – Satisfaction of end users with the contractor's completed products and services.
- c. Timeliness of performance – Compliance with schedules; reliability; responsiveness to technical direction; responsiveness to exchange of documents; and no assessment of damages.
- d. Business management – Demonstrated ability to manage projects of this nature and involving subcontracts; working relationships with the Contracting Officer and technical representatives; flexibility; effective contractor recommended solutions; and businesslike concern for Government's interests.
- e. Financial Responsibility – Demonstrated ability in providing current, accurate, and complete billings.

Past performance by key subcontractors and predecessor firms will be considered in the offeror's past performance. However, the offeror's performance under its current business structure will be considered more relevant than performance by predecessor companies, subcontractors, or individual employees.

Government evaluators may avail themselves of various federal, state, and local past performance databases. The Government may research offeror performance on any federal, state, local, and commercial contract performance of the offeror that is known to the Government, but not included on the submitted

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performance information. Additionally, the personal experience and evaluator knowledge of offeror performance may be utilized.

The Government will consider the relevance of past performance information obtained in relation to the scope of this procurement with respect to both similar efforts, and the length, scope, number, complexity, and diversity of contracts completed by the firm. Past performance, either positive or negative, which is considered by the Government to be more closely related to the scope of this effort will be given additional weight in the evaluation process.

Offerors with past performance data will be evaluated in the same manner as all other evaluation factors; however, those offerors with no past performance data will be treated as an unknown performance risk and neither be evaluated favorably nor unfavorably. Therefore, offerors will receive more favorable rating for good past performance, and less favorable for poor past performance, and neither receive more favorable or unfavorable for no relevant past performance.

Ratings for Relevant Past Performance will be evaluated as follows

- 1) **Outstanding:** Performance outcomes consistently exceed contract requirements; minimal to no performance risk; problems (if any) are rare and resolved proactively without impact. Strong corroboration from multiple sources. End-users consistently report high satisfaction; Robust PM controls; effective subcontract oversight; collaborative relationships; flexible/adaptive; proposes effective, businesslike solutions aligned with Government interests.
- 2) **Satisfactory:** Generally positive feedback with occasional issues resolved; normal/expected performance risk; issues occur but are resolved without material impact. Evidence is generally consistent across sources. references confirm acceptable experience. Adequate PM practices; acceptable subcontract oversight; generally constructive relationships; solutions meet needs.
- 3) **Marginal:** Mixed or negative feedback; Frequently does not meet requirements; notable performance risk. Recurring issues or corrective actions needed; mixed or inconsistent evidence. Weak controls; subcontractor issues (e.g., late deliverables, compliance gaps); strained relationships; reactive solutions.
- 4) **Unacceptable:** Fails to meet requirements; high performance risk. Persistent or severe issues, unresolved deficiencies, or terminations/defaults. Ineffective management; unresolved subcontractor noncompliance; adversarial relationships; solutions not viable; disregard for Government interests.

Benefit to the Local Community

The Government will evaluate the methods proposed by each contractor for benefiting the local community. The evaluation will include a determination as to how realistic and achievable the proposed methods are with added consideration for the impact and magnitude to which the local community will benefit from their operations including:

- (a) How and to what degree hiring or training of local residents as employees or as subcontractors will be accomplished in terms of retention, expansion, or creation of employment or training opportunities.
- (b) How and to what degree materials, supplies, lodging, meals, or incidentals will be purchased within project areas.
- (c) How any materials removed from the contract area will be marketed and utilized. Including contributions to the development of biomass energy, integrated utilization, and/or value-added products for an existing market or emerging market. (if applicable)

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Ratings for employment or utilization of local workforce/benefit to the Local Community will be evaluated as follows

- 1) **Outstanding:** Complete utilization of work forces and local sourcing of supplies/materials from counties within or adjacent to the Nez Perce - Clearwater National Forest along with complete marketing and utilization of all removed material in the project area.
- 2) **Satisfactory:** Some, but not all, utilization of work forces and local sourcing of supplies/materials from counties adjacent to the Nez Perce - Clearwater National Forest with some marketing and utilization of removed material in the project area.
- 3) **Marginal:** Little utilization of removed materials, work forces and little local sourcing of supplies/materials from counties adjacent to the Nez Perce - Clearwater National Forest.
- 4) **Unacceptable:** No utilization of materials, work forces and no local sourcing of supplies/materials from counties adjacent to the Nez Perce - Clearwater National Forest, or no mention of local benefits included in the proposal.

Cost/Price Evaluation Criterion

A. The degree of importance of the price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based, or when the price is so significantly high as to diminish the value of the technical superiority to the Government.

B. The Government may award a contract on the basis of initial offers received, without discussions. Therefore, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint. However, if considered necessary by the Contracting Officer, discussions will be conducted with only those offerors determined to have a reasonable chance for award.

C. The Government reserves the right to make an award to other than the lowest priced offeror or to the offeror with the highest non-price evaluation if the Contracting Officer determines that to do so would result in the greatest value to the Government.

D. All pay items on the Schedule of Items must be priced in order to be considered for award.

(b) *Options:* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award.* A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

The award will incorporate written information provided by the offeror(s) and utilized by the Government as the basis for award selection.

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74. EMPLOYMENT OF ELIGIBLE WORKERS- WORKFORCE CERTIFICATION

Contractors are required to provide certification under this solicitation in compliance with the Migrant and Seasonal Agricultural Workers Protection Act (MSPA) and Farm Labor Contractor (FLC) Certificate of Registration requirements describing the workforce they will utilize to fulfill the contract requirements under this solicitation and any resulting contract. If the Contractor will supply workers under the H-2B Program, the Contractor is required to provide a copy of the Temporary Employment Certificate issued by DOL.

Subcontractors are bound by the same requirements for licenses and permits under this contract. If a Prime Contractor identifies a Subcontractor as part of their workforce to accomplish the work under this solicitation, the Prime Contractor shall submit the Subcontractor's signed certification with their response to the solicitation.

H-2B Workers: (<http://www.foreignlaborcert.doleta.gov/>)

- ☐ Company certifies it will not be utilizing H2B Workers under any resulting contract of this solicitation.
- ☐ Company will be utilizing H2B Workers (under any resulting contract of this solicitation. Provide a copy of Temporary Employment Certificate.) MSPA Workers: (<http://www.dol.gov/whd/mspa/>)
- ☐ Company certifies it will not be utilizing MSPA workers under any resulting contract of this solicitation.
- ☐ Certifies has valid FLC certificate of registration. (Attach a copy of current certification.) Authorization includes:
 - ☐ Transporting workers
 - ☐ Driving
 - ☐ Housing workers

Company has applied for a Certificate of Registration on _____ .

Contractors not currently having obtained a certificate (for each partner, if partnership) will be requested to furnish proof of having obtained a Certificate of Registration prior to award of contract. If the contractor does not provide the required Certificate in a reasonable timeframe, the contractor will not be eligible for the contract award. Partnerships must furnish proof of registration of their assumed business name, if any, with the State of registration.

State of _____ No. _____

Information about licensing requirements and procedures may be obtained from the following:

I, on behalf of said Company, certify to the above responses.

SIGNATURE:	DATE:
PRINTED NAME:	TITLE:

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75. SIZE STANDARD AND NAICS CODE INFORMATION

The North American Industrial Classification System Code(s) and business size standard(s) describing the products and/or services to be acquired under this solicitation are listed below:

Contract line item(s): **ALL**

NAICS Code: **113310 –Logging** This industry comprises establishments primarily engaged in one or more of the following: (1) cutting timber; (2) cutting and transporting timber; and (3) producing wood chips in the field.

Size Standard: **500 Employees**

76. GOVERNMENT EMPLOYEES, FORMER USDA EMPLOYEES, AND USDA RETIREES

The offeror/quoter represents and certifies that—

- a) It ☐ is, ☐ is not a current Federal government employee.
- b) It ☐ is, ☐ is not a former USDA employee.
- c) It ☐ is, ☐ is not a retired USDA employee. If retired, give date of retirement: _____.
- d) It ☐ is, ☐ is not related by blood or marriage to a current Forest Service employee on the _____ National Forest. If so, list employee's name and location: _____.
- e) It ☐ is, ☐ is not substantially owned or controlled by a former USDA employee or retiree.

77. TAXPAYER IDENTIFICATION

Quoter shall insert their Taxpayer Identification Number: _____

78. SAM UNIQUE ENTITY IDENTIFIER (UEI) NUMBER (12 CHARACTERS)

SAM UEI number: _____